TENDER NOTICE

1.1a	Department Name	:	**WATER RESOURCES DEPARTMENT**
b	Circle/Division	:	Godavari Head Works Division, Dowlaiswaram
c	Tender Notice Number / Date	:	**165/2026-27, Dated:09.10.2026 (2nd Call)**
d	Name of work	:	Improvements to Existing Pushkar Ghat in between K.M.29.800 to K.M.30.000 on Vasista Left Bank in Gopalapuram (Gullarevu) Village Limits of Ravulapalem Mandal in Dr.B.R. Ambedkar Konaseema District
1.2a	Estimate Contract Value	:	Rs.**10,79,978/-** (Part-I)
b	Period Of Contract	:	**150** Days
c	Form of Contract	:	Lump Sum
d	Tender Type	:	Open
e	Tender Category	:	**Civil Class-V & above (as per G.O.Ms No.63 dated 13.11.2025)**
f	EMD/ Bid Security	:	Rs.**14,000**/-
g	EMD/ Bid Security Payable to:	:	Executive Engineer, Godavari Head Works Division, Dowlaiswaram, payable at State Bank of India, Innespeta, Rajahmundry
h	Bid Validity Period	:	**90 Days**.
1.3a	Schedule Sale opening Date	:	**26.10.2026 at 05.00 P.M**
b	Schedule Sale Closing Date	:	**10.10.2026 at 11.00 A.M.**
c	Bid Submission Closing date	:	**10.10.2026 Up to 11.30 A.M.**
d	Bid submission	:	**On line**
e	Price (Commercial) Bid Opening Date	:	**10.10.2026 at 11.31 AM**
f	Place of tender Opening	:	O/o Executive Engineer, Godavari Head Works Division, Dowlaiswaram, East Godavari District.
g	Officer Inviting Bids	:	Executive Engineer, Godavari Head Works Division, Dowlaiswaram, PIN 533125 East Godavari District.
h	Address	:	Executive Engineer, Godavari Head Works Division, Dowlaiswaram, East Godavari District.
i	Contact Details	:	**Sri G.Srinivas., B.E.,** Executive Engineer (FAC) Godavari Head Works Division, Dowlaiswaram, East Godavari District. Phone No. 0883-2417066.

Contractor

Executive Engineer
Godavari Head Works Division
Dowlaiswaram

The Engineer-in-Charge has to monitor the work completely up to the completion of the Pushkaram Event.

1.4 **QUALIFICATION CRITERIA**

1.4.1 The contractor registered as per G.O.Ms.No. 178 I & CAD Dept. Dt.27-09-97 or G.O.Ms.No.132 TR&B (R) Dept. Dt.11.8.98 as class III and above Contractors are only eligible to tender.G.O.Ms.No.94, I&CAD (PW-COD) Dept., Dt.01.07.2003 and above in terms of G.Os mentioned above as on the date of submission of bids are only eligible. The intending bidders would be required to enroll themselves in procurement market place www.eprocurement.gov.in and their bids online.

a) The tenderer is subject to be disqualified, if he is found to have mislead or furnished false information in the Forms/Statements/Certificates submitted in proof of qualification requirements or record of poor performance such as abandoning of work, not properly completed in earlier contracts, in-ordinate delays in completion of works, litigation history and or Financial failures and or participated in the previous tendering for the same work and has quoted unreasonably high bid price.

b) Even while execution of the work, if found that the contractor had produced false/fake certificates of experience, he will be black listed and the contract will be terminated and his EMD will be forfeited.

c) a) The bidder shall authenticate the bid with his digital certificate for submitting the bid electronically on e-procurement platform and the bids not authenticated by digital certificate of the bidder will not be accepted on the e-procurement platform.

b) TRANSACTION FEES:- The participating bidders will have to pay transaction fee of 0.03% on ECV (Estimated Contract Value + GST) Rs.____/- M/s Vayam Technologies Limited, as per G.O.Ms.No. 13 dated 5-7-2006. It is mandatory for the bidder to pay the transaction fee through the Electronic Payment Gateway.

c) e- procurement Corpus fund:- The successful bidder shall have to pay corpus fund of **0.04**% on ECV (Estimated Contract Value) with a cap of **Rs._____/-** i.e., **fee through the Electronic Payment Gateway only.**

d) The tenderer need not quote his rate item-wise, he should indicate his willingness to do the work either at estimated value of the work or at a percentage less or more than the estimated contract value of the work at the end of Schedule 'A'. He should indicate the bid amount as well as the percentage of excess or less both in figures and words.

e) Tenders with an excess of more than 5% over the estimated contract value shall be summarily rejected. No negotiations will be conducted with the tenderers at any level.

f) Tenders up to 25% less than the estimate contract value may be accepted, but for tenders which are less by more than 25% of the estimate contract value, or demand draft for the difference between the tendered amount and 75% of the estimated contract value should be taken so that if the tenderer leaves the work midway and the department is forced to call for tenders for the work once again Demand Draft shall be used to Finance the re- tendered work." (As per G.O. Ms. No. 17 Dt. 6.2.2004 of I & CAD (PW –CAD) Department.)

g). Income tax return:- The tenderer shall furnish their copy of PAN card and copy of the latest income tax (2026-27)return submitted along with proof of receipt.

h). Value Added Tax: - (GST):-

a. Value added tax at source shall be recovered from the work bills of the contractor for all the payments made at 5.00% as per G.O.Ms.No.88, revenue (CT-II) Dept., dt:27.01.2007 and Govt.Memo.No.602/ F8(1)/2006, dt:14.03.2007. The same is reimbursed to the contractor to the contractor on production of evidence.

The contractor should produce a valid GST clearance certificate before the payment of the final bill; otherwise, payment to the contractor will be withheld.

b. The tenderer shall furnish the proof of registration under Value Added Tax along with Tax payer Identification Number (TIN) from the Commercial Tax Department.

c. The building and other construction workers (Regulation of employment and Conditions of service) Act 1996 and the Cess Act of 1996. All the establishments who carry on any building or other construction work and employees 10 or more workers are covered under this Act. An such establishment are required to pay cess at the rate of 1% labour cess is to be deducted from contractors bills in respect of all payments made from 26.06.2007 following the procedure prescribed under G.O.Ms.No.41 of LET & F Dept., dt: 30.04.2007 as per Finance & Planning (W&P) Dept., U.O.Note.No.4763/PFS.F8 (A1)/07-1 dt: 04.02.2008 and Commissioner of Labour Lr.No.C.Cell/8006/07 dt: 14.08.2007 of the cost of construction and the same will be recovered from the running bills.

i). The successful tenderer has to sign an agreement within a period of 15 days from the date of receipt of communication of acceptance of his tender. On failure to do so, the concerned agreement concluding authority will suspend the business of the erring tenderer for a minimum period of one year duly forfeiting the E.M.D. The agreement concluding authority will intimate to e-procurement services to disable the Digital Key issued to the bidder for a period of one year from the date of intimation. Vupadi will take action accordingly and fact will be intimated to all the Head of the Departments.

Note:

A Any other condition regarding receipt of tenders in conventional method appearing in the tender documents may please be treated as not applicable.

B The supplied documents which are uploaded in the internet will only be considered for Technical Bid Evaluation.

C The contractors are requested to upload the information in Zip format preferably.

D The contractors are requested to submit the original D.D well in advance before opening of Technical bid.

E The contractors should upload the documents duly signing each and every paper.

1.4.2 Availability of key personal with adequate experience as required should be indicated based on the requirement for the work to be executed.

a. Graduate Engineers_____ 1 No.

b. Diploma Engineers _____ 1 No.

c. I.T.I. Certificates Holders_____ Nos.

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14.3 If found that the contractor had produced false/fake certificates of experience, he/she will be blacklisted and work will be taken over invoking clause 60 (a) of P.S. to A.P.S.S. The tenderers shall furnish declaration that they have not been black listed in any department in Andhra Pradesh due to any reasons.

1.4.4 Tender schedules once sold will not be taken back and cost of tender schedules is nonrefundable.

1.4.5 A Copy of the set of the contract document can also be had on payment of Rs.1,680/- (Rupees One Thousand Six Hundred and Eighty only) inclusive of sales tax for each set.

1.5 PROCEDURE FOR SUBMISSION OF TENDERS (Open Tenders)

1.5.1 Tenders must be submitted in sealed covers either in person or through his agent, if the tenderer wishes to send it by post it should be addressed to the Executive Engineer, Godavari Head Works Division, Dowlaiswaram- 533125 only. In case of submission to tender by post the risk and responsibility for either loss or delays in transit of the same is to be borne by the tenderer. The tender opening authority will not consider any tender received after the expiry of the date and time fixed for receipt of tenders.

1.5.2 The following Documents shall be submitted along with tender.

1. Earnest Money Deposit.
2. Evidence of (a) Registration (b) Pan Card, Income Tax Clearance (c) GST Registration certificate/clearance.
3. Technical personnel available and proposed to be engaged on the work.
4. Any other relevant information.

1.5.3 The Schedule-A of price bid will contain the working items indicated as part - I and L.S. Provisions as Part II. The premium or discount quoted by the Contractor shall be applicable only for Part I. However the provisions contained in Part II will be operable on the conditions provided in the tender schedule. The tenderers will have to state clearly their willingness to execute the work at the percentage excess or less or at par over the estimate contract value (E.C.V.) indicated in Part I at the space provided therein.

1.5.4 The name of the work, tender notice number, date and time of opening of Tenders, and address of the tenderer should be noted on the Cover.

1.6. PAYMENT OF EARNEST MONEY DEPOSIT

1.6.1 Each tenderer must pay along with the tender at the time of filing the tenders at the rate of 1% of the estimate contract value i.e. Rs.**14,000/- (Rupees Fourteen Thousand only) as E.M.D. Using (Online Payment) Net Banking/ RTGS/NEFS from their/his registered bank account one in favour of Executive Engineer, Godavari Head Works Division, Dowlaiswaram**.

1.6.2 The tenders received without the stipulated E.M.D. will be summarily rejected.

1.6.3 The E.M.D. will be retained in the case of successful tenderer and will not carry any interest and will be dealt with as provided in the tender.

1.6.4 The successful tenderer should however pay the balance E.M.D. (i.e. the E.M.D. calculated @ 2.5% less the E.M.D. paid at the time of submission of the tender

documents) at the time of signing the agreement in the shape of demand draft for a total period not less than the stipulated period of completion of the work in question, plus the defect liability period of Twelve (24) months.

1.6.5 The retention amount from the bills will be deducted at the rate of 7.5% (Seven and Half percent only) as usual.

1.6.6 The E.M.D. will be refunded to the qualified but unsuccessful tenderer either after finalization of tenders or on the expiry of validity period of tenders (i.e. 3 months from the date receipt of tenders) whichever is earlier. This refund will be authorized by Executive Engineer, Godavari Head Works Division, Dowlaiswaram by suitable endorsement in favour of the unsuccessful tenderer.

1.7 BID VALIDITY PERIOD

Tenders shall be valid for a period of 3 months. Before the expiry of the validity, the authority competent to call for tenders shall seek for further extension of validity from the Contractors and in case the validity is not extended his/her tender will not be considered and the E.M.D. shall be returned. During the period of validity if any tenderer withdraws his tender, his/her E.M.D. shall be forfeited.

1.8 If the tender is made by an individual, it shall be signed with his full name and his address shall be given, if it is made by a firm, it shall be signed wit, the co-partnership name by a member of the firm, who shall also sign his own name, and the name and address of each member of the firm shall be given, if the tender is made by a corporation it shall be signed by a duly authorized officer who shall produce with his tender satisfactory evidence of his authorization. Such tendering corporation may be required before the contract is executed, to furnish evidence of its corporate existence.

1.9 (a) Each tenderer must also submit the latest certificate of income tax verification from the appropriate income tax authorities in the form prescribed there for.
(b) In case of proprietary partnership firm will be necessary to furnish the certificate mentioned above for the proprietor and for each of the partners as the case may be.

3.0 FINALISATION OF TENDERS

3.1 Tenders will be finalized by the Executive Engineer/Superintending Engineer for the works costing up to their powers to accord technical sanctions. The Chief Engineer shall finalize the tenders for the works costing up to Rs.1.00 core (Rupees One Crore)

3.2 The tenders received will be decided within the validity period i.e. Forty Five Days after the last date prescribed for the receipt of the tenders and the decision regarding the disposal of the tenders will be informed at any time with in the said period, the tenders shall remain valid for a period of three months. The Executive Engineer, Godavari Head Works Division, Dowlaiswaram shall seek further extension of validity of tenders from the contactors if the tenders are not settled within the validity period of three months. In case the validity is not extended his/her tender will not be considered and the E.M.D. shall be returned. During the period of validity if any tenderer withdraws his tender or modify his tender his/her E.M.D. shall be forfeited.

3.3 During the above mentioned period no plea by the tenderer for any sort of modification of the tender based upon or arising out of any alleged misunderstanding or misconceptions or mistake or for any reason will be entertained.

3.4 In consideration of the Executive Engineer / Superintending Engineer/Chief Engineer/ Commissionerate of Tenders undertake to investigate, and to take into account each tender and inconsideration of the work there by involved, all the E.M.D. paid by the tenderer will be forfeited to the Government in the event of such tenderer either modifying or withdrawing his tender at his instance within the said validity period of three months.

4.0 EXCESS TENDER

4.1 The maximum permissible tender excess is 25% over the E.C.V. tenders with an excess of more than 25% over the E.C.V. shall be summarily rejected. The rest of the tenders will be scrutinized carefully to arrive at the reasonableness of the bids quoted.

4.2 The Tenders received are found to have abnormally high percentage or within the permissible ceiling limits prescribed, but under collusion or due to unethical practices adopted at the time of tendering process, such tenders shall be rejected.

4.3 Negotiations are not permitted to be conducted at any level.

5.0 DISCOUNT TENDER

5.1 Tenders up to 25% less than the E.C.V. may be accepted but for tenders which are less by more than 25% of E.C.V. or demand draft for the difference between the tendered amount and 75% of E.C.V. should be produced by the tenderer at the time of concluding the agreement. If the tenderer leaves the works midway and the department is forced to call for tenders for the work again, the Demand draft shall be used to finance the re-tendered work.

5.2 When a tender is to be accepted the tenderer whose tender is under consideration shall attend the office of the Executive Engineer, Godavari Head Works Division, Dowlaiswaram on the date fixed by written intimation to him. He shall forth with upon intimation being given by the Executive Engineer, Godavari Head Works Division, Dowlaiswaram of acceptance of his tender make payment of balance E.M.D. and sign an agreement in the proper departmental from the due fulfillment of this contract. This E.M.D. and the amounts withheld according to condition 1-6-5 of tender notice shall retain as security for the due fulfillment of the contract. If a cash security deposit is made by the contractor he shall follow the procedure laid down in the proceeding Para's, for payment of E.M.D. and such deposit will not bear interest. Failure to attend the Executive Engineer, Godavari Head Works Division, Dowlaiswaram office on the date fixed in the written intimation from such office or to enter into the required agreement shall entail forfeiture of the Earnest Money deposit. The written Agreement to be entered into between the contractor and the Government shall be foundation of the rights and obligations of both the parties and the contract shall not be deemed to be completed until the agreement has first been signed by the contractor and then by the officer authorized to enter into contract on behalf of the Government.

5.3 The successful tenderer has to sign an agreement within a period of 15 (fifteen) days from the date of receipt of communication of acceptance of his tender. On failure to do so his tender will be concealed duly forfeiting the E.M.D. paid by him without issuing any further notice.

6.0 The tender shall examine closely the **A.P.S.S./MoRth** and also the standard preliminary specifications contained therein and sign Executive Engineer's office copy of the **A.P.S.S./MoRth** and its addenda volume in token of such study before submitting his tender which shall be for finished work IN-SITU. He shall also carefully study the drawing and additional specifications and all the documents which form part of the agreement to be entered into by the successful

tenderer. The **A.P.S.S./MoRth** and other documents connected with such as specifications plans and any other information can be had at any time between 11-00 A.M. to 5-00 P.M. on all working days in the office of the Executive Engineer, Godavari Head Works Division, Dowlaiswaram.

7.1 The tenderers attention is drawn to requirements of materials under the clause materials and "Work man ship" in the preliminary specifications. Material conforming to the Indian standards specifications shall be used on the work and the tenders shall quote his bid accordingly.

7.2 The tenderer has to do his own testing of materials and satisfy himself that they confirm to the specifications of respective I.S.I. codes before tendering.

7.3 The contractor shall himself procure the required construction materials of approved quality including the earth for formation of embankment and water from source of his choice all materials required for the work shall be got approved by the Engineer-in-charge in writing well before their use on the work.

7.4 The contractor shall himself procure those Sheet Piles, Cement, Steel Bitumen, Sand, Blasting Materials, Metal, Soils etc., and such other materials required for the work well in advance. The contractor has to bear the cost of materials, conveyance and storage charges etc. The department will not take any responsibility for fluctuations in market in cost of materials, transportation and loss of materials.

7.5 Any additional conditions which are coming in to the force from time to time shall be observed as and when they are come into force.

ARTICLES OF AGREEMENT

Articles of agreement made this _____day of _____ between His Excellency the Governor of Andhra Pradesh (herein after called Governor which expression shall. Where the context so admits include his successors in office and assignees) of the one part and _____of _____ (herein after called the contractor which expression shall where the context so admits include his heirs, executors, administrators and legal representative) of the other part.

Whereas the Government of Andhra Pradesh (herein after called the Government) are desirous of taking up the work of **Improvements to Existing Pushkar Ghat in between K.M.29.800 to K.M.30.000 on Vasista Left Bank in Gopalapuram (Gullarevu) Village Limits of Ravulapalem Mandal in Dr.B.R.Ambedkar Konaseema District** have caused an estimate of probable quantities contained in scheduled A drawings and specifications describing the work to be done to be prepared.

And Whereas the said Schedule A, drawings numbered serially 1 to _____ inclusive (Schedule B) and the special specifications (Schedule C), additional conditions for materials (Schedule D) General Conditions (Schedule E) detailed tender notice, tender articles of Agreement have been signed by or on behalf of the parties here to.

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And whereas the contractor has agreed to retain with the Government of the earnest money of Rupees _____

(i) paid by him vide _____ date_____ issued by _____ _____valid upto _____

(2) and Rupees _____ paid by him vide _____ dated _____ issued by _____ valid upto _____ have been produced with towards additional security for the due fulfillment of the contact to the satisfaction of Executive Engineer, Godavari Head Works division. The Contractor having agreed to keep EMD at 2 1/2% valid the completion of work plus observation period and additional security deposit till the completion of work to the satisfaction of Executive Engineer.

And whereas the contractor has agreed that during the course of the contract period an amount at the rate of 7.5% of the value of work done will be withheld from the bills as F.S.D.

And whereas the contractor has also signed the copy of the Andhra Pradesh standard specification and addenda volume there to maintained in the Irrigation Circle Office Dowlaiswaram in token of acknowledgment of being bound by all the conditions of the clauses of the Standard preliminary specification and all the standard specification's for items of works described by a standard specification number in schedule A.

And whereas contractor has agreed to execute upon the subject to the conditions set forth in the preliminary specification of the Andhra Pradesh standard specifications and such other conditions as are contained in all specifications forming part of the contract (herein after referred to as "the said conditions) the work shown upon the drawing and described in the said specifications and set forth in schedule A as the 'Probable Quantities' and comply with the rate of progress noted at the end of this articles of agreement for a sum of Rs. _____ (Rupees_____ _____) or such other sum as may be arrived at under the clauses of the standard preliminary specifications relating to payment on lumsum basis or by final measurement at unit rate.

Note it is hereby agreed as follows :

1. In consideration of the payment of the said sum of Rs._____ or such other sum as may be arrived at under the clause of the standard preliminary specification relating to payments on lumsum basis or by final measurement at unit rate, the contractor will, upon and subject to the said conditions, execute and complete the works shown upon the said drawing and described in said specifications, and to the extent, of the probable quantities shown in the schedule A with such variations by way of alterations of additions to or deductions from, the said works and method of payment there for as are provided for in the said works and conditions.
2. The term Executive Engineer in the said conditions shall mean the public works officer in charge of the Godavari Head Works Division, Dowlaiswaram having jurisdiction for the time being over the work. Who shall be competent to exercise all the powers and privileges reserved herein, in favour of the Government with the previous sanction of or subject to the ratification by the Superintending Engineer, Irrigation Circle, Dowlaiswaram herein after called Superintending Engineer in case where such sanction or ratification may be necessary.

Contractor

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3. ADJUDICATION OF DISPUTES:

Except as otherwise provided in the contract, any disputes and differences arising out of or relating to the contract shall be referred to adjudication as follows:

1. (i) Settlement of all claims upto Rs.50,000/- in value and below by way of Arbitration to be referred as follows :

a. Claims upto Rs.10,000/- in value : Superintending Engineer of another Circle in the same Dept. Superintending Engineer, Irrigation Circle, Visakhapatnam.

b. Claims above Rs.10,000/- and upto Rs.50,000/- in value : Another Chief Engineer (of the same Department) Chief Engineer – Krishna Delta System, Vijayawada.

The arbitration proceedings will be conducted in accordance with provisions of the Arbitrator Act. 1940 as amended from time to time. The arbitrator shall invariable give reasons in the award.

ii) Settlement of all claims above Rs.50,000/- in value.

All claims above Rs.50,000/- in value shall be decided by the civil court of competent jurisdiction by way of regular suit and not by arbitration.

2. A reference for adjudication under this clause shall be made by either party to the contract with in six months from the date of intimating the contractor of the preparation of final bill or his having accepted payment.

3. The relevant clause of Andhra Pradesh Standard specification stand modified to the extent provided in this clause.

4. Time shall be considered as of the essence of the agreement and the contractor hereby agrees to commence the work as soon as the agreement is accepted by the competent authority as defined by the Andhra Pradesh Public works Department code and the site (or premises) is handed over to him as provided for in the said conditions and agrees to complete the work within 45 days from the date of such handing over the site (or premises) and to show progress as defined in the tabular statement "Rate of Progress" below, subject to never-the-less to the provisions for extension of time contained in clause.59 of the standard preliminary specifications.

5. The said conditions shall be read and construed as forming part of this agreement and the parties here to will respectfully abide by and submit themselves to the conditions and stipulations and perform the agreement on their part, respectively.

6. Upon the terms and conditions of this agreement being fulfilled and performed to the satisfaction of the Executive Engineer, the security deposited by the Contractor as herein before recited or such portion there of as he may be entitled to under the said condition shall be returned to the contractor as provided in clause 3 of Schedule E.

In witness thereof, the contractor M/s. / Sri _____ here into set his hand and Sri. _____

Contractor

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Dowlaiswaram

Executive Engineer Godavari Head Works Division, Dowlaiswaram 14 acting on behalf of and by the order and direction of his excellency, the Governor of Andhra Pradesh has here into set his hand the day and year first above written.

Signed by Contractor : M/s. / Sri. _____

Address :

Phone No. : Fax No. :

In the presence of Witness i) Sri _____

Signed by on behalf of Government Sri _____

In the presence of witness : EXECUTIVE ENGINEER
G.H. Division, DOWLAISWARAM.

RATE OF PROGRESS

The rate of progress provided in the tabular statement under conditions 14.1 of tender notice shall apply and proportionate value of work done from time to time as will be indicated by the Executive Engineer's certificates of the value of the work done will be required.

Date of commencement of programme will be the date on which the agreement is concluded.

SCHEDULE – A

SCHEDULE OF RATES AND APPROXIMATE QUANTITIES

A. The quantities here given are those upon which the lumsum tender cost of the work in based but they are subject to alterations, omissions, deductions or additions as provided for in the conditions of this contract and do not necessarily show the actual quantities of work to be done. The unit rates noted below are those governing payment of extras or deductions or omissions according to the conditions of the contract as set-forth in the preliminary specifications of the A.P. Standards specifications and other conditions or specifications of this contract.

B. It is to be expressly understood that the measured work is to be taken net (not withstanding any custom or practice to the contrary) according to the actual quantities when in place and finished according to the drawings or as may be ordered from time to time by the Executive Engineer and the cost calculated by measurement or weight, at their respective rates without any additional charge for any necessary or contingent works connected there with. The Bid quoted is for works in - situ and complete in every respect.

C. Additions and alteration in the schedule of quantities rates amounts rates amounts and total amount or the estimate given hereunder will disqualify the tender.

D. In case of discrepancy between the written description of the item in the schedule A and the detailed description in the specification of the same item, the latter shall be adopted.

Item No No.	As per Estimate Approx. Quantity In Figures	Description of Work	APSS No.	Estimate Rate in Figures	Unit of Calculation	Estimate Amount Figures

SEPARATE BOOKLET ENCLOSED

SCHEDULE – A

PREAMBLE

1) The rates and amounts of estimate furnished in Schedule A are inclusive of turn over tax and construction of temporary store shed, but exclusive of cost of engaging. Technical personnel of the Contractor, Insurance premium for the work. Hence the Contractor should quote his bid keeping in view of the above aspects.

2) The quoted bid shall include all construction materials. No escalation in rates will be paid. The tenderer has to quote his bid considering all the aspects of the tender to complete the finished item of work as per the A.P.S.S. & I.S. specifications, the special specifications appended Drawing etc.,

3) If there is any construction between A.P.S.S. and I.S. Specification, listed and detailed technical specifications, the latter shall prevail.

4) In case of a job for which specifications are not available with schedule or in APSS or in I.S. code and are required to be prescribed, such work shall be carried out in accordance with the written instructions of the Engineer-in-Charge recorded in the "Order Book".

5) The contractor should use the excavated useful soils and stone for construction purpose soils used for construction will be at free of cost and the cost of stone used for construction purpose will be recovered from the Contractors bills at SSR Rates at the time of preparation of estimate per cum either for homogeneous section or in hearing or in casing zone based on the suitability.
The Contractor should quote his bid keeping in view of the above aspects.

6) The actual mix preparation by weight to be adopted during execution will be got designed in the laboratories to suit the grade of concrete and mortar to be used. It will be the responsibility of the Contractor to manufacture concrete and mortar of required strength. The Excess or less usage of cement due to change in mix proportion and the design proportion if any that will be evolved in the laboratory will be paid or recovered as per rules / from the Contractor. No cost due to variation of other materials of mix due to change in mix design. (i.e., other than cement) will be paid or recovered.

Note : No bulk-age in concrete will be allowed.

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7) The quoted bid shall also include the work of any kind necessary for the due and satisfactory construction, completion and maintenance of the works to be intent and meaning of the drawings and these specifications and further drawings and orders that may be issued by the Engineer from time to time. The quoted bid shall include compliance by the contractor with all the general conditions of contract, whether specifically mentioned or not in the various clauses of these specifications, all materials apparatus, plant, equipment, tools, fuel, water, strutting, timbering, transport, offices, stores, workshop, staff, Labour and the provision of proper and sufficient protective works, temporary fencing and lighting.

It shall also include safety of workers, first-aid equipment, suitable accommodation for the staff and workmen, with adequate sanitary arrangements, the effecting and maintenance of all insurance, the payment of all wages, salaries, fees, royalties, duties or other charges arising out of the erection of works and the regular clearance of rubbish, reinstatement and clearing-up of the site as may be required on completion of works safety of the public and protection of the works and adjoining land.

8) The Contractor shall ensure that, the quoted bid shall cover all stages of work such as setting out, selection of materials, selection of construction methods, selection of equipment and plant, deployment of personnel and supervisory staff, quality control testing etc. The work of building in quality assurance shall be deemed to be covered in the quoted bid.

8.1 ADDENDUM TO SCHEDULE - 'A'

1. i) For all items of work in excess of the quantities indicated the rates payable for such excess quantities will be either the rates arrived at as per bid or SS rates for the item plus or minus over all tender percentage accepted by the competent authority whichever is less. The SS rates means the rates for the year with the estimate is prepared / sanctioned for comparing the tender.

ii) The contractor is bound to execute all supplement items that are found essential incidental and inevitable during execution of main work.

2. The payment of rates of such supplemental items of work will be regulated as under.

A). Supplemental items directly deducible from similar items in the original agreement. The rate shall be higher (a) derived by adding to or subtracting from the agreement rate of such similar item, the cost of difference in quantity of material or Labour between the new item and the similar item in the agreement worked out with reference to the schedule of rates adopted in the sanctioned estimate with which the tenders were compared plus or minus over all tender percentage. or (b) the estimate rate plus or minus over all tender percentage whichever is less.

B). New items
a) Similar items the rates of which cannot be directly deduced from the original agreement.
b) Purely new items which do not correspond to any item in the agreement. The rate shall be estimate rate plus or minus overall tender percentage.

Note : If may be noted that the term estimate rate used in (A) and (B) above means the rate in the sanctioned estimate with which the tenders were compared or if no such rate is available in the estimate the rate derived with reference to the schedule of rates adopted in the sanctioned estimate with which tenders are compared.

III. Entrustment of addition items

1) Wherever additional items not contingent on the main work and outside the scope of original agreement are to be entrusted to the original contractor dispensing with tenders and if the value of such items exceeds the limits up to which the officer is empowered to entrust work initially to a contractor without calling for tenders approval of the next higher authority shall be obtained. Entrustment of all such items on nomination shall be at rates not exceeding the estimate rates.

2) Entrustment of supplement items contingent on the main work will be authorized by the officers upto the monetary limits upto which they themselves are competent to accept in an original agreement so long as the total amount of supplemental in an original agreement does not exceed the amounts upto which they are competent to accept in an original agreement rates for such items shall be worked in accordance with the procedure prescribed in G.O.Ms.No.1493 PWD dated 25-10-1971 as amended in Govt. Memo No. 544 cond. 72-22 dated 6-7-1973 and G.O.Ms. or 900 PWD Dt. 6-8-1975.

3) Entrustment of either the additional or supplemental items shall be further subject to the provisions under para 176(E) of APWD Code Viz. the items shall not be ordered by an officer on his own responsibility if the revised estimate of deviation statement providing for the same requires the sanction of a higher authority.

SCHEDULE - "B"

LIST OF DRAWING

The drawings enclosed to the tender documents shall be used as a reference only.

S.No.	Description	No. of Drawings

1) The plans enclosed with the tender are liable to be altered during execution of work as per necessity of site conditions. The bid quoted by the contractor for various items shall hold good for execution of work even with altered plans

2) One set of drawings on the basis of which actual execution of the work is to proceed shall be furnished, free of cost to the contractor by the Executive Engineer progressively according to the work programme submitted by the Contractor and accept by the Executive Engineer. Drawings for any particular activity shall be issued to the contractor at least 30 days in advance of the scheduled date of the start of the activity. However, no extra claims by the contractor towards any delay in issue of the drawing or issue of any revision/change to the drawings issued earlier shall be admissible. The Executive Engineer shall intimate the contractor 7 days in advance regarding any delay in issue of drawings, for any particular stage of works. If work gets effected due to delay to issue of drawings, the contractor shall be granted extension of time in terms of condition 14.7 of tender notice.

3) Signed drawings above shall not be deemed to be an order for work unless they are entered in the agreement or schedule of drawings under proper attestation of the contractor and Executive Engineer or unless they have been sent to the contractor by the Executive Engineer with a covering letter confirming that the drawing is an authority for work in the contract.

DISCREPANCIES :

a. In case of discrepancies between documents the following order of procedure shall apply.

i) Between the written description or written dimensions in the drawings and the corresponding one in the specifications the latter shall apply.
ii) Figured dimensions shall supersede scaled dimensions. The drawing on a larger scale shall take precedence over those on a smaller scale.
iii) Drawings issued as construction drawings from time to time shall supersede the tender drawings and also the corresponding drawings previously issued.

Note : The contractor should not execute any component of work without obtaining the working drawings. Any work done without drawings shall be at the contractors responsibility only. Acceptance of such work will be at the discretion of the Executive Engineer.

SECRECY CLAUSE

The drawings and specifications made available to the tenderer shall exclusively be used on the work and they are retained from passing on each plan to any unauthorized hand either in parts or in full under the provisions of section-3 and 5 of the official secrets Act 1923. Any violation in this regard will entail suitable action under appropriate clause of official secrets act 1923.

8.0 INSPECTION OF SITE AND QUARRIES BY THE TENDERERS

Every tenderer is expected, before quoting his bid, inspect the site of proposed work. He should also inspect the quarries and satisfy himself about the quality and availability of materials. The best class of materials to be obtained from quarries, or other source shall be used on the work. In every case the material must comply with the relevant standard specifications. Samples of materials as called for in the standard specifications or in the tender notice or as required by the Executive Engineer, in any case shall be submitted for the Executive's Engineer's approval before the supply to site of work is begun. The contractor after examination of the source of materials shall state clearly in his tender, where from the intends to obtain materials, subject to approval of the Superintending Engineer / Executive Engineer.

9.1 The tenderers particular attention is drawn to the sections and clauses in the standard specifications dealing with.

i. Test, Inspection and rejection of defective materials and work.
ii. Carriage.
iii. Construction plant.
iv. Water and lighting.
v. Cleaning up during the progress and for delivery
vi. Accidents.
vii. Delays.
viii. Particulars of payments.
ix. The contractor should closely peruse all the specifications clauses which govern the bid he is tendering.

9.2 The defect liability period of contract in terms of clause 28 of A.P.S.S. and G.O.Ms. No.23, Dt:5-3-99 shall be (12/24) Twelve/Twenty four months for original works.

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10.1 A Schedule of quantities, rates amounts and total amount of work is given in Schedule 'A' of tender documents. It shall be definitely understood that the Government does not accept any responsibility for the correctness, as this schedule is liable to alternations by omissions, deductions or additions at the discretion of the Executive Engineer or as set forth in the conditions of the contract. The tenderer will however base his lumsum tender on the schedule of quantities.

10.2 In the tender schedule, the quantities rates and amounts item wise as well as the total value of contract are furnished as worked out by the department. The tenderers will not be required to quote item wise. He should indicate his willingness to do the work either at the estimated value of the work or at a percentage in excess of the estimated value of the work or at the percentage, less than the estimated value of work in both words and figures. The percentage quoted by the tenderer should be limited to two decimal digits only. If any tenderer quotes percentage of more than "two decimal digits" all other digits beyond second digit will be ignored as if they are nil. It is to be clearly understood that they will not be rounded off to the nearest second decimal digit.

11.1 Discrepancy in financial bid : If there is any discrepancy is between the words and figures in quoting the above percentage the percentage quoted in words shall prevail.

11.2 No alteration which is made by the tenderer in the contract form, the conditions of the contract, the drawings, specifications or Schedule "A" accompanying the same will be recognized and if any such alterations are made, the tender will be void.

11.3 A tenderer submitting a quotation which the tender accepting authority considers excessive and or indication of insufficient knowledge of current Prices or definite attempt of profiteering will render himself liable to be debarred permanently from tendering or for such period as the tender accepting authority may decide. The tenderers bid should be based on the controlled prices for the materials if any fixed by the Government or the reasonable prices permissible for the tenderer to charge a private purchase under the provisions of clause-6 of the hoarding and profiteering prevention ordinance of 1943 as amended from time to time and on similar principle in regard to Labour supervision in the construction.

11.4 No escalation on prices and wages will be paid. The tenderer has to quote the bid taking into account of any variation in rates during the period of execution i.e., from the date of quoting the rates to the end of completion of the work in all respects.

12.0 The following L.S. Provisions are provided in the estimate for carrying out the above work and shown in Part-II of schedule 'A'.

1. Insurance
2. Employment of Technical Personal.
3. GST @ 18 % on ECV
4. NAC @ 0.1% on ECV
5. Seigniorage charges
6. DMF charges @ 30% of Seigniorage charges
7. Merit charges at 2% of Seigniorage charges

Contractor

Executive Engineer
Godavari Head Works Division
Dowlaiswaram

Suitable reimbursement to the contractors will be made from out of the above provisions (not exceeding the amounts indicated against each) on production of insurance Policies, copies of appointment orders of the personnel with payment vouchers, Bank Guarantees etc., failing to comply with the above, reimbursement shall not be allowed full suitable penalty shall be imposed for not engaging Technical Personnel and Engineer-in-Charge shall take insurance policy at the cost of contractor duly deducting the premium from the Contractors bills. The Contractor has to take policy in favour of the employee i.e., Department.

13. **ADVANCE MOBILISATION LOAN**

The Executive Engineer will make an advance to the contractor for the cost of mobilization in respect of the work in two installments a sum equivalent to 10% of the contract amount (5% for Labour mobilization and 5% for machinery and equipment) named in the letter of acceptance payable as per, above, Payment of the loan will be done under separate certification by the Executive Engineer, after (i). Execution of the form of agreement by the parties thereto (ii). Provision by the contractor of the further security in accordance with relevant condition and (iii). Provision by the contractor of from scheduled bank acceptable to the Executive Engineer for an amount equal to 12% (which includes 2% for the interest charges) of the contract amount as indicated in the letter of acceptance towards the installment of the advance mobilization loan, such to remain effective until the said advance loan has been completely repaid by the contractor out of the current earnings under the contract and certified accordingly by the Executive Engineer. The 'Advance mobilization loan' will be paid within 30 days after fulfilling the above i, ii, and iii items, Advance mobilization loan will be paid only in case of contracts with estimated contract value exceeding Rs.100 lakhs.

14. **TIME FOR COMPLETION** :

14.1(a) The total period of completion is **Month** from the date of entering into agreement to proceed including rainy season. Keeping in view the schedule for handling over of site given in condition 14.2 below the work should be programmed so as to achieve the mile-stones as in "Rate of progress statement" enclosed.

(b) The attention of the tenderer is directed to the contact requirement at the time of beginning of the work, the rate of progress and the days for the whole work and its several parts as per mile stones. The following rate of progress and proportionate value of work done from time to time as will be indicated by the Executive Engineer's Certificate of the value of work done and completion of mile stones will be required. Date of commencement of the programme will be the date of concluding agreement.

(c) After signing the agreement, the contractor shall forth with begin the work, shall regularly and continuously proceed with them.

14.2 **RATE OF PROGRESS**

THE TOTAL PERIOD OF COMPLETION OF WORKS IS MONTHS FROM THE DATE OF ENTERING INTO AGREEMENT TO PROCEED INCLUDING RAINY SEASON. THE WORK SHALL BE PROGRAMMED SUCH AS TO ACHIEVE THE MILE STONES AS UNDER

Mile Stone No.	Period of Mile Stone	Physical				Liquidated damages per day
		Descriptive of work				
		E.W.E Quantity In cum	Concrete Quantity In Cum	Masonry RR / CRS Quantity in cum	Stone work Quantity in cum	
1	2	3	4	5	6	7
I						
II						
III						

II) HANDING OVER OF SITE:

The entire site will be handed over to the contractor at a time on the date of concluding agreement itself.

14.3 The contractor shall commence the works on site within the period specified under conditions 14.1 above after the receipt by him of a written order to this effect from the Executive Engineer and shall proceed with the same with due expedition and without delay, except as may be expressly sanctioned or ordered by the Executive Engineer, or be wholly beyond the contractor's control.

14.4 Save in so far at the contract may prescribe, the extence of portions of the site of which the contractor is to be given possession from time to time and the order in which such portions shall be made available to him and, subject to any requirement in the contract as to the order in which the works shall be executed. The Executive Engineer will, or Executive Engineer's written order to commence the works, give to the contractor possession of so much of the site as may be required enable the contractor to commence and proceed with the execution of the works in accordance with the programme referred to in clause '1' of Schedule 'E'. If any, and otherwise in accordance with such reasonable proposals of the contractor as he shall, by written notice to the Executive Engineer, make and will, from time to time as the works proceed, give to the contractor possession of such further portions of the site as may be required to enable the contractor to proceed with the execution of the works with due dispatch in accordance with the said programme or proposals as the case works with due dispatch in accordance with the said programme or proposals as the case may be; if the contractor suffers delay or incurs cost from failure on the part of the Executive Engineer to give possession in accordance with the terms of this clause, the Superintending Engineer shall grant an extension of time for the completion of works.

14.5 The contractor shall bear all costs and charges for special or temporary way leases required by him in connection with access to the site. The contractor shall also provide at his own cost any additional accommodation outside the site required by him for the purpose of the work.

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14.6 Subject to any requirement in the contract as to completion of any section of the works before completion of the whole of the works shall be completed in accordance with provisions of clause No. 5 of schedule 'E' within the time stated in the contract calculated from the last day of the period named in the statement to the tender as that within which the works, are to be commenced or such extended time as may be allowed.

14.7 DELAYS AND EXTENSION OF TIME:

No claim for compensation on account of delays or hindrances to the work from any cause whatever shall be, except as hereinafter defined. Reasonable extension of time will be allowed by the Executive Engineer or by the officer competent to sanction the extension, for unavoidable delays, such as may result from causes, which in the opinion of the Executive Engineer, are undoubtedly beyond the control of the contractor. The Executive Engineer shall assess the period of delay or hindrance caused by any written instructions issued by him, at twenty five percent in excess of the actual working period so lost.

In the event of the Executive Engineer falling to issue necessary instructions and thereby causing delay and hindrance to the contractor, the latter shall have the right to claim an assessment of such delay by the Superintending Engineer of the Circle whose decision will be final and binding. The contractor shall lodge in writing with the Executive Engineer a statement of claim for any delay or hindrance referred to above, within fourteen days from its commencement, otherwise no extension of time will be allowed.

Whenever authorized alterations or additions made during the progress of the work are of such a nature in the opinion of the Executive Engineer as to justify an extension of time in consequence thereof, such extension will be granted in writing by the Executive Engineer.

14.8.1 LIQUIDATED DAMAGES

If for any reason, which does not entitle the contractor to an extension of time, the rate of progress of works, or any section is at any time, in the opinion of the Executive Engineer to slow to ensure completion by the prescribed time or extended time for completion, Executive Engineer shall so notify the contractor in writing and the contractor shall there upon take such steps as are necessary and the Executive Engineer may approve to expenditure progress so as to complete the works or such action by the prescribed time or extended time. The contractor shall not be entitled to any additional payment for taking such steps. If, as a result of any notice give by the Executive Engineer under this clause the contractor shall seek the Executive Engineer's permission to do any work at night or on Sundays, if locally reprised as days of rest, their locally recognized equivalent, such permission shall not be unreasonably refused.

14.8.2 If the contractor fails to complete whole of the works or any part there of or section of the works within the stipulated periods of individual mile stones (including any bona-fide extensions allowed by the competent authority without levying liquidated damages), the Executive Engineer may without prejudice to any other method of recovery will deduct one tenth of one percent of contract value per calendar day or part of the day for the period of delays subject to a maximum of 10% of the contract value not as a penalty from any monies in his hands due or which may become due to the contractor. The payment or deduction of such damages shall not relieve the contractor from his obligation to complete the works, or from any other of his obligations and liabilities under the contract.

15. SUBLETTING OF CONTRACT

Subletting the work is strictly prohibited. No part of the contract shall be sublet without written permission of the Executive Engineer nor shall transfer be made by power of attorney authorizing others to receive payment on the contractor's behalf. However if it becomes necessary such permission for subletting shall be limited only to the following items of works.

i. Labour Contract.
ii. Materials Contract.
iii. Transport Contract.
iv. Engaging specialist for special item of work as per clause 55 of A.P.S.S.

In the event it is found that any portion of the work is sublet without permission, action will be taken against the contractor by debarring him from participating in the tenders for the period not less than one year by the Engineer-in-Chief/Chief Engineer concerned.

16. If further necessary information is required, the Executive Engineer will furnish such information but it must be clearly understood that tenders must be received in order and according to instructions.

17. The Executive Engineer Godavari Head Works Division, Dowlaiswaram or the sanctioning authority reserves the right to reject any or all the tenders without assigning any reasons there for.

18. The contractor shall keep identification cards issued by the registering authority at all times, while at the site of work and at offices and produce the identity cards as and when asked for.

19. A retired officer of the I & CAD, Department is disqualified from tendering for any work for which Government funds are used for a period of two years from the date of retirement without the prior permission of the Government. The Contractor is liable to be cancelled if either the contractor or any of his employees is found at any time to be such a person who had not obtained the permission of the Government as aforesaid before submission of the tender or engagement in the contractor's service.

20.1 Contractor shall not be eligible to tender for works in the division / circle where any of his near relatives are employed in the rank of Assistant Engineer or Assistant Executive Engineers and above on the engineering side and Divisional Accounts Officer and above on the administrative side. The contractor shall intimate the names of persons who are working with him in any capacity or are subsequently employed. He shall also furnish a list of Non - Gazetted I & CAD, employees related to him. Failure to furnish such information the tenderer is liable to be removed from the list of approved contractors and his contract liable for cancellation.

Note : Near relatives includes

1. Sons, step sons, daughters, and step daughter.
2. Son-in-law, and Daughter-in-law.
3. Brother-in-law and Sister-in-law.
4. Brothers and Sisters.
5. Father and Mother.
6. Wife/Husband.
7. Father-in-law and Mother-in-law.
8. Nephews, Nieces, Uncle and Aunties
9. Cousins and
10. Any person residing with the contractor.

20.2 The contract will be cancelled if either the contractor himself or any of his employees is found to be Gazetted officer who retired from service and had not obtained permission from the Government for accepting the contractor's employment within a period of 2 years from the date his retirement.

21. **TECHNICAL AGENTS**

The contractor shall employ the following technical staff during execution of work, unless he himself is technically qualified person.

1. One Graduate Engineer and one Diploma holder for works costing more than Rs.15.00 lakhs.
2. One Graduate Engineer or two Diploma holders for works costing between Rs. 5.00 lakhs and Rs.15.00 lakhs.
3. One Diploma holder for works costing between Rs.1.00 lakh and Rs.5.00 lakhs.
4. One I.T.I. candidate for works costing between Rs. 50,000 and RS. 1.00 lakh.
5. For works costing less than Rs. 50,000 on technical staff need be employed by the contractor.

21.1 Failure to employ the required technical staff by the contractor, for full time, the equivalent amount as per S.S.R. will be recovered from the contractor besides penal action.

Note:

1. The Technical staff should be on full time basis and available at site whenever required by Engineer in charge to take instructions.

2. The names of the technical staff to be employed by the contractor should be furnished in the statement enclosed separately.

3. In case the contractor is already having more than one work on hand and if he is himself qualified Engineer and has undertaking more than one work at the same time. He should employ separate technical person on each work

4. The Contractor shall have to produce the insurance policy in favour of the department and copies of appointment orders of technical personnel before starting the work. The contractor shall also produce payment voucher to technical personnel periodically. Failing to comply with the above conditions, reimbursement shall not be allowed for the above items and the insurance policy will be taken by the department and the cost will bear recovered from contractor bill as per 1.04 of Annexure-I of G.O.Ms.No.23 I & CAD dt.:05-03-99. A penalty of shall be imposed besides for not engaging the technical personnel.

22. SETTLEMENT OF DISPUTES

22.1 If any dispute or difference of any kind what so ever shall arise between the department and the Contractor in connection with, or arising out of the Contract, of the execution of the works, whether during the progress of the works or after their completion and whether before or after the termination, abandonment or breach of the Contract, it shall in the first place be referred to and settled by the Executive Engineer who shall within a period of thirty days after being requested by the Contractor to do so, give written notice of his decision to the Contractor. Upon receipt of the written notice of the decision of the Executive Engineer the Contractors shall promptly, proceed without delay to comply with such notice or decision.

22.2 If the Executive Engineer fails to give notice of his decision in writing within a period of thirty days after being requested or if the Contractor is dissatisfied with the notice of the decision of the Executive Engineer, the Contractor may within thirty days after receiving the notice of decision appeal to the Superintending Engineer who shall afford an opportunity to the Contractor to be heard and to offer evidence in support of his appeal. The Superintending Engineer shall give notice of his decision within a period of thirty days

After the Contractor has given the said evidence in support of his appeal, subject to arbitration, as here in after provided. Such decision of the Superintending Engineer in respect of every matter so referred shall be final and binding upon the Contractor and shall forthwith be given effect to by the Contractor. Who shall proceed technical person on each work with the execution of the works with all due diligence whether he requires arbitration as here in after provided, or not. If the Superintending Engineer has given written notice of his decision to the contractor and no claim to arbitration, has been communicated to him by the Contractor within a period of thirty days from receipt of such notice, the said decision shall remain final and binding upon the Contractor. If the Superintending Engineer shall fail to give notice of this decision, as aforesaid, within a period of thirty days after being requested as aforesaid, or if the Contractor be dissatisfied with any such decision, then and in any such case the Contractor within thirty days after the expiration of the first named period of thirty days as the case may be, require that the matter or matters in dispute be referred to arbitration as hereinafter provided.

22.3 Except as otherwise providing in the contract, any disputes and differences arising out of or relating to the contract shall be referred to adjudication as follows:

A i) Settlement of all claims upto to Rs.50,000/- in value and below by way of arbitration to be referred as follows :

a. Claims upto Rs. 10,000/- in value	:	Superintending Engineer Irrigation Circle, Vishakapatnam.
b. Claims above Rs. 10,000/- and upto Rs.50,000/- in value	:	Chief Engineer, Krishna Delta System, Vijayawada.

The arbitration proceedings will be conducted in accordance with the provisions of the Arbitration Act 1940 and as amended from time to time. The arbitrator shall invariably give reasons in the award.

ii) Settlement of all claims above Rs.50,000/- in value.

A) All claims above Rs.50,000/- in value shall be decided by the Civil Court of competent jurisdiction by way of regular civil suit and not by arbitration.

B) A reference for adjudication under this clause shall be made by either party to the contract with in Six months from the date of intimating the contractor of the preparation of final bill or his having accepted payment whichever is earlier.

C) The relevant clause of A.P. Standard Specification stands modified to the extent provided in this clause.

Note : Claims means all claims in that contract.

23. In case the work is ordered to be taken up before the acceptance of L.S. agreement, K-2 agreement will be provisionally entered into the same will stand superseded when L.S. contract is subsequently signed and accepted. All the work done under such K-2 contractor will then be treated as part of the L.S. contract and acted on accordingly. If the contractor fails to conclude the L.S. agreement within 2 months from the date of receipt of the notice from the department it will entail forfeiture of the earnest money and the cost of the work in done. Further the contractor is liable to reimburse the extra cost incurred if any by department in completing the balance work.

24.1 **ADDITIONAL CONDITIONS TO THE TENDER NOTICE**

24.2 The contractor should furnish the address in the tender to which communication relating to the contract may be sent and also authorize a person to be available at work spot during his absence. Any change in the encumbrance of the authorized agent shall be communicated in writing by the contractor to the Executive Engineer and their acknowledgment obtained on his copy of the communication.

24.3 It is to be expressly and clearly understood that contractor shall make his own arrangements to equip himself with all machinery and special tools and plant required for the speedy and proper execution of the work and the department does not undertake any responsibility towards their supply.

24.4 The tenderer should select quarries of his own choice as well as sources of water and quote the bid including quarrying, conveyance and all other charges.

24.5 The work will have to be executed as per the IS specifications, standard specifications of APSS and special specification attached herewith or as directed by the Engineer-in-charge with reference to the working drawings.

24.6 Bid quoted in Schedule 'A' shall be for finished work in site and inclusive of all incidental and contingent charges. All taxes such as sales tax, Seigniorage, royalty's turnover tax etc., in respect of materials to be used on the work must be borne by the contractor.

24.7 Vernacular signature should be translated into English.

24.8 The contractor shall at his cost do all the drainage and pumping necessary for carrying out the work including shoring, strutting etc., the contractor shall provide at his own cost necessary river diversion works other than coffer dams and other protective works contingent on the work. It is the duty of the contractor not only to provide for such works but also maintain them during the course of work in serviceable and safe condition. The Department accepts no responsibility for any work itself consequent on the failure of the coffer dams, diversion works or protective works. Whether it be due to rains, floods in the river or others causes. The bid quoted must be inclusive of all the above charges.

24.9 Excavation will be paid for with vertical / slopes indicated in the drawings as far as foundations are concerned and will be paid only once during execution as per plans and section. If the contractor finds it convenient to make out the excavation at slopes other than those shown in the plan to avoid shoring in any case, it shall be done at his cost and it shall be his responsibility to make the excavation safe, at all stage of work.

21.10 Re-handling of excavated soil due to injudicious selection of the place of dumping shall not be paid for.

24.11 As per G.O.Ms. No. 85 IW CAD Dt 1-6-99 for earth work excavation and embankment upto 15000 cum manual rate in provided and if the quantity exceeds 15,000 cum the machinery rate is adopted. The Contractor is given an option for manual or machinery operations. Irrespective of the quantities for following items of work shall be taken up manually.

(i) Stripping where the depth is in-adequate for handling with machinery.
(ii) Excavation of sub-miners and field channels, narrow reaches and formation of subgrade base for receiving lining of canals, excavation of rock toe, toe drains, filter drains and building foundations.

24.12.1 The contractor should use the excavated useful soils and stone obtained from excavation for construction purpose.

21.12.2 The responsibility for arranging the land for borrow area and disposal of spoil, rests with the contractor and no separate payment will be made for the procurement or otherwise and contractor quoted bid will be inclusive of the land cost.

24.13 The special attention of the tenderer is drawn to the conditions in the tender notice wherein reference has been made to the Andhra Pradesh standard Specifications and the standard, preliminary specifications contained therein. These preliminary specifications shall apply to the agreement to be entered into between the contractor and Government of Andhra Pradesh and shall form an inseparable condition of the contract along with the additional conditions of contract, special specifications, drawings, agreement, schedules etc. All these documents taken together shall be deemed to form one contract and shall be complementary to one another.

24.14 During the currency of the contract deduction of income tax at 2.00% shall be made from the gross value of each bill of the contract, the contract value of which is in excess of Rs.10,000/- for deduction of tax at rates lower than 2.00% procedure stipulated under section 194-c(4) of income Tax 1961 shall be followed.

24.15 Income Tax clearance certificate should be furnished before the payment of final bill, where value of contract is over Rs.10, 000/-

24.16 SEIGNIORAGE CHARGES: The Seigniorage Charges for the materials used on the work shall be recovered from the contractor's bill at the following rates. The Seigniorage charges as per G.O.Ms.No.217 Industries & Commerce (M) Department, dated 29-9-2004 and **G.O.Ms.No:11 Dated:11.02.2020**

Sl. No	MATERIALS	SEIGNORAGE CHARGES
01	Sand	Rs. 100 (Rupees Hundred) forCum
02	Metal, R.R. Stone For Masonry, Revetment Stone, C.R. Stone	Rs.90 / 60 (Rupees Ninty / Sixty)
03	Morum / Gravel & Ord. Earth	Rs. 45/30 (Rupees Forty Five/ Thirty) per Cum

The rates are liable to be revised and amended from time to time by the State Government by notification in the "Andhra Pradesh Gazette". if the revised Seigniorage fee is more than the above mentioned, recovery from the contractor's bills is as per revised rates.

24.17 As per contract (Regulation and Abolition Act 1970) the contractor has to furnish the license obtained from the licensing officer of the Labour Department along with the tender or at the time of Agreement.

24.18 GST :
GST 18% on value of work done as per norms will be reimbursed and 2% of the value (i.e. 1% SGST+CGST) will be deducted at source on total value of contract.

24.19 In order to establish the Institute of construction technology and as per the request of "Builders Association of India, A.P. Centre" 0.10% of the contract gross value will be recovered in the running gross bills as their contribution as per G.O.Ms.No. 98, Dt:05.07.2000 IW CAD(PWCOD) dept. which made such contribution mandatory.

24.20 Labour Cess @ 1.00%

TENDER

To Date:

THE EXECUTIVE ENGINEER
Godavari Head Works Division, Dowlaiswaram.

Sir,

I/We do hereby tender and if this tender be accepted, undertake to execute the following work Viz. **Improvements to Existing Pushkar Ghat in between K.M.29.800 to K.M.30.000 on Vasista Left Bank in Gopalapuram (Gullarevu) Village Limits of Ravulapalem Mandal in Dr.B.R.Ambedkar Konaseema District** as shown in the drawings and described in the specifications deposited in the office of the Executive Engineer Godavari Head Works Division, Dowlaiswaram with such variations by way of, alternations or additions to, and omissions from the said work and method of payment as are provided for in the "Conditions of the Contract" for the sum basis or by final measurement at unit rates".

I/We have also quoted the bid in Schedule 'A' annexed (In words and figures) for which I/We agree to execute the work when the lumsum payment under the terms of the agreement is varied by payment on measurement quantities.

I/We have quoted bid in Schedule A both in words and figures. In case of any discrepancy between the rates quoted in words and figures, the bid quoted in words only shall prevail.

I/We agree to keep the offer in this tender valid for a period of 45 Days mentioned in the tender notice and not to modify the whole or any part of it for any reason with in above period. If the tender is withdrawn by me/us for any reason whatsoever, the earnest money paid by me/us will be forfeited to government.

I/We hereby distinctly and expressly, declare and acknowledge that, before the submission of my / our tender I/We have carefully followed the instructions in the tender notice and have read the A.P.S.S. and the preliminary specifications therein and the A.P.S.S. addenda volume and that I/We have made such examination of the contract documents and or the plans, specifications and quantities and of the location where the said work is to be done, and such investigation of the work required to be done, under the

terms of the agreement and in regard to the material required to be furnished as to enable me/us to thoroughly understand the intention of same and the requirement, covenants, agreements, stipulations and restrictions contained in the contract and in the said plans and specifications, and distinctly agree that I/We will not hereafter make any claim or demand upon the Govt. based upon or arising out of any alleged misunderstanding or misconception / or mistake on my / or our part of the said requirement, covenants, agreements, stipulations, restrictions and conditions.

I/We enclose to my/our tender a crossed Demand Draft (No._____ dt. _____) for Rs_____ as earnest money not to bear interest.

I/We shall not assign the contract or sublet any portion of the same. In case it becomes necessary such subletting with the permission of the Executive Engineer shall be limited to 1) Labour contract, 2) Material Contract, 3) Transport contract and 4) Engaging specialists for special items of work enjoined in A.P.S.S.

If my/our tender is not accepted the sum shall be returned to me/us on application when intimation is sent to me/us of rejection or at the expiration of two months from last date of receipt of this tender, whichever is earlier? If my/our tender is accepted the earnest money shall be retained by the Government as security for the due fulfillment of this contract. If upon written intimation to me/us by the Superintending Engineer / Executive Engineer's Office, I/We fail to attend the said office on the date herein fixed or if upon intimation being given to me/us by the Executive Engineer of acceptance of my/our tender, and if I/We fail to make the additional security deposit or to enter into the required agreement as defined in condition -5.0, 5.1, 5.2, 5.3 of the tender notice, then I/We agree to the forfeiture of the earnest money. Any notice required to be served on me/us here under shall be sufficiently served on me/us if delivered to me/us personally or forwarded to me/us to the address given herein. Such notice shall if sent by post be deemed to have been served on me/us at the time within due course of post it would be delivered at the address to which it is sent.

I am / We are professionally qualified and my / our qualifications are given below :

Name Qualification

I/We will employ the following technical staff for supervising the work and will see that one of them is always at site during working hours, personally checking all items of works and paying extra attention to such works as require special attention (eg.) Reinforced concrete work.

Name of members of Technical Staff proposed to be employed Qualifications

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I/We declare that I/We agree to recover the salaries of the technical staff actually engaged on the work by the department from the work bills, if I/We fail to employ technical staff as per the tender condition.

Contractor

Executive Engineer
Godavari Head Works Division
Dowlaiswaram

TENDERERES / CONTRACTOR'S CERTIFICATE

1) I/We hereby declare that I/We have perused in detail and examined closely the Andhra Pradesh specifications, all clauses for the preliminary specifications with all amendments and have either examined all the standard specifications or will examine all the standard specifications for items for which I/We tender before I/We submit such tender and agree to be bound and comply with all such specifications for this agreement which I/We execute in the I & CAD Department.

2) I/We certify that I/We have inspected the site of the work before quoting my/our bid I/We have satisfied about the quality, availability and transport facilities for stone, sand and other materials.

3) I/We am/are prepared to furnish detailed data in support of all my quoted bid if and when called upon to do so without any reservations.

4) I/We hereby declare that I/We will pay an additional security deposit in Terms of condition 5.1.2 of tender notice.

5) I/We hereby declare that I am/We are accepting to reject my tender in terms of conditions 5.1.3 of tender notice.

6) I/We hereby declare that I/We will not claim any price escalation.

7) I/We hereby declare that I am/We are accepting for defect liability period as 24 months for the originals works.

8) (a) I/We declare that I/We will procure the required construction materials including earth and use for the work after approval of the Engineer-in-Charge. The responsibility for arranging and obtaining the land for borrowing or exploration in any other way shall rest with me/ us for the materials for construction. I/We shall ensure smooth and un-interrupted supply of materials.

   (b) I/We declare that the responsibility for arranging and obtaining the land for disposal of spoil/soil not useful for construction purposes shall rest with me/us.

   (c) I/We declare that I/We shall not claim any compensation or any payment for the land so arranged for disposal of soil and land for borrow area. My/our quoted rates are inclusive of the land so arranged and I/We will hand over the land so arranged for disposal of soil to the department after completion of work.

   (d) I/We declare that I/We will not claim any extra amount towards any materials used for the work other than the quoted works for respective schedule A items.

9) I/We declare that I/We will execute the work as per the mile stone programme, and if I/We fail to complete that work as per the mile stone programme I/We abide by the condition to recover liquidated damages as per the tender conditions.

10) I/We declare that I/We will abide for settlement of disputes as per the tender conditions.

Contractor

Executive Engineer
Godavari Head Works Division
Dowlaiswaram

DECLARATION OF THE TENDERER

1) I/We have not been black listed in department in A.P. due to any reasons.

2) I/We have not been demoted to the next lower category for not filling the tender after buying the tender schedule in a whole year and my/our registration has not been cancelled for a similar default in two consecutive years.

3) I/We agree to disqualify me/us for any wrong declaration in respect of the above and to summarily reject my/our tender.

SCHEDULE - E

ADDITIONAL CONDITIONS SUPPLEMENTAL TO THE PRELIMINARY SPECIFICATIONS TO A.P.S.S. PROGRESS SCHEDULE

1. **CONSTRUCTION PROGRAMME**:

1.1 The contractor shall furnish within one month of the order to start the work as programme showing the order of procedure in which he proposed to carry out the work in quadruplicate, monthly progress expected to be achieved also indicating date or procurement and setting of materials plant and machinery. The schedule should be such as is practicable of achievement towards completion of the whole work in the time limit and in keeping within the Mile stone programme specified under condition 14 in the tender notice and shall have the approval of the Executive Engineer. Further the rate of progress in the schedule shall be kept upto date. In case it is subsequently found necessary to alter this schedule, the contractor shall submit sufficiently in advance the revised schedule incorporating necessary mollification proposed and get the same approved by the Executive Engineer. No revised schedule shall be operative without such acceptance in writing.

1.2 The Superintending Engineer shall at have all times the right without any way violating this contract, or forming grounds for any claim to alter the order of the works or any part thereof and the contractor shall after receiving such directions proceed in the order directed. The contractor shall also report the progress to the Superintending Engineer within 7 days of the Executive Engineer's direction to alter the order of works.

1.3 The contractor shall given written notice to the Engineer-in-Charge whenever planning or progress of the works is likely to be delayed or disturbed unless any further drawing or order including a direction, instruction or approval is issued by the Engineer-in-Charge within a reasonable time. The notices shall include details of the drawing of order required and of why and by when it is required and of any delay or distribution likely to be suffered if it is late. If by reason of any failure or inability of the Executive Engineer to issue within a time reasonable in all the circumstances any drawing or order requested by the contractor, the contractor suffers delay. Then the Executive Engineer shall take such delay into account in determining any extension of time.

SPEED OF WORK

1.4 The contractor shall at all times maintain the speed of work to confirm to the latest operative progress schedule provide the Executive Engineer with progress report and bar charts indicating the programme and progress once in a month. The Executive Engineer may at any time in writing direct the contractor to slow down any part or whole of the work for any reason (Which shall not be questioned) whatsoever, and the contractor shall comply with such orders of the Executive

Engineer. The compliance of such orders shall not entitle the contractor to any claim or compensation. Such orders of the Executive Engineer for slowing down the work will however be duly taken into account while granting extension of time if asked by the contractor for which no extra payment will be entertained.

1.5 Work during night or / on Sundays and Holidays:

Unless otherwise provided, none of the permanent works shall be carried out during night, Sundays or authorized holidays without the permission in writing. However, when work is unavoidable or necessary for the safety of life, property or works, the contractor shall take necessary action immediately and advise the Engineer-in-Charge accordingly.

2. **PAYMENT OF BILLS** :

The contractor will be permitted to submit their work bills once in a month and payment will be made after proper check of quantity and quality within a reasonable time limit.

1. **MEASUREMENT AND CHECK MEASUREMENT** :

Payment for the work done by the contractor will be made for the finished work based on the measurement recorded in measurement books by any officer of the department not lower in rank than an Assistant Engineer and check measured by an officer not lower in rank than a Deputy Executive Engineer. The measurement shall be recovered at various stages of the work while in progress for the proper assessment of quantities of work done and also after work is completed or when the contract is terminated. The contractor shall be present at the time of recording of each set of measurement and their check measurement and accept them, then and there so as to avoid disputes at a later stage. If the contractor is not available at the work spot at the time of recording measurement or check measurements the particulars of the measurement shall be signed by the authorized agent of the contractor based on which the contractor shall accept the set of measurements without any further dispute. If for any reason the contractor's authorized agent is also not available at site and the work spot to be measured by the Department to avoid recording of measurement during the absence of the contractor or his authorized representative the department shall not entertain any claim from the contractor for any loss incurred by him on his account. The contractor shall however note that the Department cannot identify wait for recording the measurement due to the absence of the contractor and his authorized agent and check measurement them even in the absence of the contractor after giving in writing a notice of 3 days.

2.2 Measurement will be recorded for the finished work for which all tests are conducted in accordance with Schedule 'C' and Schedule 'D' and the work is done in accordance with Schedule C by using the materials, specified in Schedule 'D' prescribed specifications.

3. PAYMENTS AND CERTIFICATES :

3.1 Payment shall be adjusted for recovery of advance payments liquidated damages in terms and condition 14.8 and 14.82 of tender notice and security for the due fulfillment of the contract. Payment will be made to the contractor under the certificate to be issued at reasonably frequent intervals by the Executive Engineer, within fourteen days of the date of each certificate, and intermediate payment will be made of a sum equal to 92 1/2% of the value of work, as so certified and balance of 7 1/2% will be withheld and retained as a security for the due fulfillment

of the contract under the certificate to be issued by the Executive Engineer on the completion of the entire works the contractor will receive the final payment of all the moneys due or payable to him under or by virtue of the contractor except earnest money deposit retained as security and a sum equal to 2 1/2% of the total value of the work done, provided the is no recovery from or for feature by the contractor to be made under liquidated damages and clause 60 of APSS. The amount withheld from the final bill will be retained under deposits and paid to the contractor together with the earnest money deposit retained as security after a period twenty four months as all defects shall have been made good according to the true intent and meaning thereof.

3.2 No certificate of the Executive Engineer shall be considered conclusive evidence as to the sufficiency of any work or materials or correctness of measurement to which it relates. Nor shall it relieve the contractor from his liability to make good defects as provided by the contractor. The contractor, when applying for a certificate, shall prepare a sufficiently detailed bill based on the original figures or quantities and rates in the contract, Schedule 'A' to the satisfaction of the Executive Engineer, to enable the Executive Engineer or Dy. Executive Engineer to check the claim and issue the certificate. The certificate as such of the claims mentioned in the application as are allowed by the Executive Engineer shall be issued within fourteen days of the application. No application for a certificate shall be made within fourteen days of a previous application.

3.3 In case of over payment or wrong payment made if any to the contractor due to wrong interpretation of the provisions of the contract, APSS or otherwise, such unauthorized payment will be deducted in the subsequent bills or final bills for the work or from the bills under any other contracts with the Government or at any time thereafter from the deposits available with the Government.

3.4 Any recovery or recoveries advised by the Government Department either state or central, due to non-fulfillment of any contract entered into with them by the contractor shall be recovered from any bill or deposits of the contractor.

3.5 No claim shall be entertained if the same is not represented in writing to the Executive Engineer within 15 days of its occurrence.

3.6 The contractor is not eligible for any compensation for inevitable delay in handling over the site in accordance with, the condition 14 of tender notice. In such cases suitable extensions of time will be granted after considering the merit of the case.

3.7 The contractor shall have the right to withdraw from the contract and obtain refund of his security deposit if such intimation of handing over the site in accordance with condition 14 of tender notice is delayed more than two months from the date of acceptance of the agreement by competent authority.

3.8 **INTEREST ON MONEY DUE TO THE CONTRACTOR** :

No omission by the Executive Engineer or the Sub-divisional officer to pay the amount due upon certificates shall vitiate or make void the contract, nor shall the contractor be entitled to interest upon any guarantee fund or payments in a arrear, nor upon any balance which may, on the final settlement of his accounts, the fund to be due to him.

3.9 Whenever the held amount reached 1,000 or a multiple thereof, contractor may, at his option, deposit with Executive Engineer Rs.1,000 or a multiple thereof, in any if the forms of interest being securities recognized for the purpose by the Andhra Pradesh Public Works Accounts Code and subject to the provisions there in contained, in which case the equivalent withheld amount shall be paid to him forth

with. The contractor will be permitted exercise the option in this clause, subject only to the condition that the rate of progress contained in the Articles of Agreement is properly maintained.

4. **INTERMEDIATE PAYMENTS** :

4.1 For intermediate stage of work, only part rates as fixed by the Executive Engineer will be paid.

4.2 Part rates shall be worked out for the work done portion based on the actual operations involved keeping in view of the balance work to be done, to avoid unintended benefit to the contractor in initial stage.

4.3 Full rate shall be paid when the work is completed in all respects as noted in the drawings.

4.4 For earthwork in cutting, 10% of the quantity will be withheld for intermediate payments and the same will be released after completing the work to the profiles as per drawings and disposal of the spoil material at the specified places and handing over of balance useful stone. For this purpose a length of 25 mts. will be taken as a unit.

4.5 For earthwork embankment formation work, 10% of the quantity will be held for intermediate payments and the same will be released after completing the bund to the profiles as per drawings including trimming of side slopes and all other works contingent to the bund profile. For this purpose 25 Mts. of length will be taken as Unit.

CERTIFICATE OF COMPLETION OF WORKS :

5.1 When the whole of the works have been completed and have satisfactory passed any final test that may be prescribed by the Contract, the Contractor may give a notice to that effect to the Engineer accompanied by an undertaking to finish any outstanding work during the period of maintenance. Such notice and undertaking shall be in writing and shall be deemed to be a request by the Contractor for the Engineer to issue a Certificate of Completion in respect by the works. The Engineer shall, within twenty one days of the date of delivery of such notice either issue to the Contractor, with a copy to the Employer, a certificate of completion of stating the date on which, in his opinion, the works were completed in accordance with the contract or give instructions in writing to the Contractor specifying all the works which, in the Engineer's opinion, requires to be done by the Contractor before the issue of such certificate. The Engineer shall also notify the Contractor of any defects in the works affecting completion that may appear after such instructions and before completion of the works specified therein. The Contractor shall be entitled to receive such Certificate to the completion within twenty one days of completion to the satisfaction of the Engineer of the Works so specified and making good any defects so notified.

5.2 Similarly in accordance with the procedure set out in sub clause (1) of this clause the contractor may request and the Engineer shall issue a Certificate of completion in respect of :

a) Any section of Permanent works in respect of which a separate time for completion is provided in the Contract and

b) Any substantial part of the Permanent works which has been both completed to the satisfaction of the Engineer and occupied or used by the Employer.

5.3 If any part of the Permanent Works shall have been completed and shall have satisfactorily passed any final test that may be prescribed by the Contract, the Engineer may issue of such certificate, the Contractor shall be deemed to have undertaken to complete any outstanding work in that part of the works during the period of maintenance.

5.4 Provided always that a Certificate of completion given in respect of any section or part of the permanent works before completion of the whole shall not be deemed to certify completion of any ground of surfaces requiring in statement, unless such certificates shall expressly so state.

6.0 Delay in commencement or progress or neglect of work and forfeiture of earnest money, security and withheld amounts.

If, at any time, the Executive Engineer shall be of the opinion that the Contractor is delaying commencement of the work or violating any of the provisions of the contractor is neglecting or delaying the progress of the work as defined by the tabular statement. "Rate of progress in the Articles of Agreement', he shall so advise the contractors in writing and at the same time demand compliance in accordance with condition - 14.2 of Tender Notice. If the contractor neglects to comply with such demand within seven days after receipt of such notice, it shall then, or at any time thereafter, be lawful for the Executive Engineer to take suitable action in accordance with Clause 60 of A.P.S.S.

7.1 Suspension of the works by the contractor:

If the contractor shall suspend the works, or sublet the work in terms of clause 15 of Tender Notice without sanction of the Executive Engineer, or in the opinion of the Executive Engineer shall neglect or fail to proceed with due diligence in the performance of his part of the Contract as laid down in the schedule rate of progress, of if he shall continue to default or repeat such default in the respects mentioned in clause 27 of the A.P.S.S. The Executive Engineer shall take action in accordance with clause 61 of A.P.S.S.

7.2 If the Contractor stops work for 28 days when no stoppage of work is shown on the current programme and the stoppage has not been authorized by the Executive Engineer and not suitable for granting extension of time in accordance with clause 14.7 of Tender Notice, the contract will be terminated under clause 61 of A.P.S.S.

7.3 If the contractor has delayed the completion of works by the number of days for which the maximum amount of liquidated damages can be paid as defined in the tender notice under condition 14.8.1 and 14.8.2 and the contract will be terminated under clause 61 of A.P.S.S.

7.4 The Executive Engineer may terminate the contract for convenience.

8.1 **EXTRA ITEMS**:

Extra items of work shall not vitiate the contract. The contractor shall be bound to executive extra items of work as directed by the Engineer-in-charge. The rates for extra items shall be worked out by the Executive Engineer as per the conditions of the contract and the same are binding on the contractor.

9.1 **QUALITY CONTROL**:

In addition to the normal inspection by the regular staff in charge of the construction of work, the work will also be inspected by the Executive Engineer /

Superintending Engineer Quality Control circle or by the State or District Level Vigilance Cell Unit and if any substandard work or excess payments are noticed with reference to measurement books etc., during inspection, recovery will be ordered based on their observation and these will be effected by the Executive Engineer of the execution of the work.

10.1 I.S.I. BOOKS AND APSS TO BE KEPT AT SITE :

A complete set of Indian Standard specification referred to in "Technical Specifications" and A.P.S.S. shall be kept at site for reference.

10.2 DRAWINGS TO BE KEPT AT SITE

a) One copy of the drawings furnished to the contractor shall be kept by the contractors on the site and same shall at all reasonable times be available for inspection and use by the Executive Engineer and by any other person authorized by the Executive Engineer in writing.

b) Order Book: An order book shall be kept at the Department office on the site of the work. As far as possible, all orders regarding the work are to be entered in this book. All entries shall be signed and dated by the Department Officer in direct charge of the work and by the contractor or by his representative. In important cases, the Executive Engineer or the Superintending Engineer will countersign the entries which have been made. The order book shall not be removed from the work, except with the written permission of the Executive Engineer.

c) Variations by way of modification, omissions or additions :

i) For all modifications, omissions or addition to the drawings and specifications the Executive Engineer will issue revised plans or written instructions, or both and no modification, omission or addition shall be made unless so authorized and directed by the Executive Engineer in writing.

ii) The Executive Engineer shall have the privilege of ordering modifications, omission or additions at any time before the completion of the work and such orders shall not operate to annual those portions of the specifications with which said changes do not conflict.

11. ENGINEERS'S-IN-CHARGE DECISION :

It shall be accepted as an inseparable part of the Contract that in matters regarding materials, workmanship, removal of improper work, interpretation of the contract drawings and contract specification, mode of the procedure and carrying out of the work, the decision of the Engineer-in-Charge, which shall be given in writing, shall be binding on the contractor.

The Engineer-in-Charge's authority applies to technical consideration and does not include decisions regarding sums due to or from the Contractor or extension of time.

12.1 PLANT AND EQUIPMENT :

The contractor shall have sufficient plant, equipment and Labour and shall work such hours and shifts as may be necessary to maintain the progress on the work as per the approved progress schedule. The working and shift hours shall comply with all Govt. regulations in force.

12.2 The department shall supply such of the machinery that may be available on hire basis but their supply cannot be demanded as matter of right and no delay in progress can be attributed to such non-supply of the plant by the department and the department cannot be made liable for any damage to the contractor. The contractor shall be responsible for safe custody of the departmental machinery supplied to him (which will be delivered to contractor at the machinery yard at site of work) and he has to make good all damages and losses if any other than fire, wear and tear and bring it to the condition that existed at the time of issue to the contractor before handing over the same to the department. The hire charges for the machinery handed over to the contractor will be recovered at the rate prevalent at the time of supply. The contractor will have to execute supplemental agreement with Executive Engineer at the time of supply of the machinery.

12.3 The acceptance of Departmental machinery on hire is optional to the contractor.

13. STEEL FORMS:

Steel forms should be used for all items involved and use of centering and shuttering. They shall be such that the concrete surface obtained after removal of centering or shuttering shall be single plane without any dents and undulations.

14. PERSONNEL OF THE CONTRACTOR:

14.1 The contractor shall at times, maintain on the work a staff of qualified Engineers and Supervisors of sufficient experience of similar other jobs to ensure that the quality of work turned out shall be as intended in these specifications and they shall be present at the work-spot during working hours and at the time of inspection by the Department Officers. All orders and direction given to such supervisory or other staff of the contractor to be present on any specified inspection and the contractor shall comply with such requisitions.

14.2 The contractor shall supply to the Executive Engineer details of name, qualifications and experience in regard to all supervisory staff employed by the contractor and notify the changes when made and satisfy the Executive Engineer regarding the quality and adequacy of staff thus employed.

14.3 The Executive Engineer will have the unquestionable right to ask for change in the contractor's supervisory staff and to other removal from the work and connection herewith of any of such staff. The contractor shall comply with such order and effect replacement to the satisfaction of the Executive Engineer.

14.4 The contractor shall not without written authorization permit entry on site of work of any person authorized agents, engaged in connection with work.

14.5 All vehicles used by the contractor shall be clearly marked with contractor's name.

15. FOOD GRAINS :

The contractor should make his own arrangements for procuring food grain for his staff and Labour. However, the department will try to assist in getting permission for supply of food grains.

16. SECURITY MEASURES :

16.1 The contractor shall be responsible for the security of the works for the duration of the contract and shall provide and maintain continuously adequate security personal to fulfill these obligations. The requirements of security measures shall include but not limited to maintenance or order on the site, provision of all lighting, fencing, guard, flagmen and all other measures necessary for the protection of the works within the colonies, camps and elsewhere on the site, all materials delivered to the site, all persons employed in connection with the works continuously throughout working and non-working period including nights, Sundays and holidays for duration of the contract.

16.2 Other contractors working on the site currently with the contractor will provide security for their own plant and materials. However, their security provisions shall in no way relieve the contractor of his responsibilities in this respect.

16.3 Separate payment for provision of security services will not be made and the cost of this work shall be deemed to have been included in the bid.

17. LIABILITIES OF THE CONTRACTOR :

17.1 Accident Relief and workmen compensation:
The contractor should make all necessary arrangements for the safety of workmen on the occurrence of the accident, which results in the injury or death of any of the workmen employed by the contractor, the contractor shall within 24 hours of the happening of the accident and such accidents should intimate in writing to the concerned Assistant Engineer / Assistant Executive Engineer of the Department the act of such accident. The contractor shall indemnify government against all loss or damage sustained by the Government resulting directly or indirectly from his failure to give intimation in the manner aforesaid including the penalties or fines if any payable by Government as a consequence of Government failure to give notice under workmen's compensation act or otherwise confirm to the provisions of the said Act in regard to such accident.

17.2 In the even of an accident in respect of which compensation may become payable under workmen's compensation Act VIII 23 whether by the contractor, by the Govt. is shall be lawful for the Executive Engineer to retain such sum of money which may in the opinion of the Executive Engineer be sufficient to meet such liability. The opinion of the Executive Engineer shall be final in regard to all matters arising under this clause.

17.3 The contractor shall at all times indemnify the Government of A.P. against all claims which may be made under the workmen's compensation act or any statutory modifications thereafter or rules thereunder or otherwise consequent of any damage or compensation payable in consequent of any accident or injuries sustained or death of any workmen engaged in the performance of the business relating to the contractor.

18. CONTRACTORS RISKS :

18.1 All risks of loss or damage to physical property and of personnel injury and death which arise during and in consequence of the performance of the contract other than the expected risks are the responsibility of the contractor.

18.2 INSURANCE :

The contractor shall provide in the joint names of the Employer and the contractors insurance cover from the start date and upto the end of the defects liability period 24 months in the amounts and deductibles stated in the contract data for the following events which are due to the contractor's risks.

a) Loss of or damage to the works, plant and materials
b) Loss of or damage to the Equipment.
c) Loss of damage of property (except of works plant, materials and equipment) in connection with the contract and
d) Personal injury or death.

18.3 Policies and certificates for insurance shall be delivered by the contractor to the Engineer for the Engineer's approval before the start date. All such insurance shall provide for compensation to be payable in the types and proportions of currencies required to rectify the loss or damage incurred.

18.4 If the contractor does not provide any of the policies and certificates required, the Employer may effect the insurance which the contractor should have provided and recover the premiums the Superintending Engineer Executive Engineer had paid from payments otherwise due to the contractor or, if no payments is due, the payment of the premiums shall be a debt due as provided in the clause 12.0 of tender notice.

18.5 Alterations to the terms of insurance shall not be made without the approval of the Engineer.

18.6 Both parties shall comply with any conditions of the insurance policies.

19. **USE OF SITE** :

The contractor may be permitted to avail the site as per departmental rules on lease for use by him in carrying out the contractor work and when Executive Engineer may consider such use to be necessary for the bona-fide purpose of executing works. The contractor shall commence any operation on such lands with the prior approval of the Executive Engineer.

20. ECOLOGY :

The contractor shall preserve all existing vegetation's such as trees adjacent to the site which does not interfere with construction as determined by the Executive Engineer. The contractor shall take all possible precautions to avoid unnecessary damage to vegetation, structure and any other Government property nearby and to trees to be felled and to structures under construction, to the workmen and shall be responsible for any damage if it occur in such operations. All produce from the cutting of trees etc., shall be the property of the Government and shall be stacked and placed at the place specified by Executive Engineer. No claim shall be made for such cutting and stacking trees etc., by the contractor. If any produce from such cutting is not handed over to the Department by the contractor, he shall be charged for the same at the rates to be decided by the Engineer-in-charge. The recovery of this amount shall be made in full form the intermediate bill that follows.

20.2 The contractor shall not unnecessarily or for use fuel cut any trees, brushwood grass or, other vegetation's nor shall set fire thereto without the written permission of the Executive Engineer. When such permission has been given, the contractor shall, take necessary measures to prevent damage and for prevention of fire spreading to surrounding property and shall be responsible to any such damage if caused.

20.3 ECOLOGICAL BALANCE:

a) The contractor's construction activities shall be performed by methods that will prevent entrance or accidental spillage of solid matter contaminants, debris and other objectionable pollutants and wastage into river. Such pollutants and waste include earth and earth products, garbage, cement, concrete, sewage effluent industrial wastages, radioactive substances, mercy, oil and other petroleum products, aggregate processing, mineral salts and thermal pollution, pollutants and wastes shall be disposed of in a manner and at sites approved by the Engineer-in-charge.

b) In conduct of construction activities and operations of equipment, the contractor shall utilize such partible methods and devices as are reasonably available to control prevent and otherwise minimize the air pollution.

c) The excessive emission of dust into the atmosphere will not be permitted during the manufacture, handling and storage of concrete aggregates and the contractor shall use such methods and equipment as are necessary for collection and disposal or prevention of dust during operations. The contractor's method of storing handling cement shall also include means of eliminating atmosphere discharges of dust. Equipment and vehicles that give objectionable emission of exhaust gases shall not be operated. Burning of materials resulting from cleaning of tree bush, combustible construction materials and rubbish may be permitted only when atmosphere conditions for burning are considered favorable.

d) Separate payment will not be made for complying with the provisions of this clause and all cost shall be deemed to have been included in the unit rates and prices included in the contract if any provision (s) is not complied with within a reasonable time even after issue of a notice in the respect, the necessary operations would be carried out by Engineer-in-charge at the cost of the contractor. Orders of the Engineer-in-charge in this respect would be final and binding on the contractor.

21. CLEARING OF THE SITE AND REHANDING OVER :

21.1 Government land as may be considered necessary by the Executive Engineer for the execution of the work will be given to the contractor and shall be handed over to the department in good condition and to the complete satisfaction of the Executive Engineer.

21.2 All areas of operations including those for his staff and Labour colonies handed over to the contractor shall be cleared and handed back to the Executive Engineer. The contractor shall make good to the satisfaction of the Executive Engineer all damages or alterations made to the area while handing over back of other property or land handed over to him for purpose of the works. Temporary structures may be erected by the contractor such as storage sheds, office, and residence etc., for non-commercials use in the land handed over to him at his expense and within the permission of the Executive Engineer. At the completion of work, the structures should be dismantled at the site cleared and handed over to the department.

22.1 VAGUS / DRAINS

The contractor shall at all-time carry out cross drainage works in a manner creating least interference to the natural flow of water while consistent with the satisfactory execution of work. A temporary diversion shall be formed by the contractor at his cost where necessary. No extra payment shall be made for this work.

22.2 No separate charge for bailing out sub soils, water drainage or locked up rain water for diversion, shorting, foundations, bailing of pumping water either from excavation of soils from foundations and such other incidental will be paid unless otherwise specified in Schedule 'A'. The bid to the quoted by the contractor is for the finished item of work in site and including all the incidental charges. The borrow pits are also to be dewatered by the contractor himself at this expense, if that should be found necessary.

22.3 The work of diversion arrangements should be carefully planned and prepared by the contractor and forwarded to the Executive Engineer technically substantiating the proposals and approvals of the Executive Engineer obtained for execution.

22.4 The contractor has to arrange for bailing our water, protection to the work in progress and the portion of works already completed and safety measures for men and materials and all necessary arrangements to enable the contractor to complete the work.

22.5 All the arrangements so required should be carried out and maintained at the cost of the contractor and no separate or additional payments are admissible.

22.6 COFFER DAMS

Necessary coffer dams and ring bunds have to be constructed at the cost of contractor and same are to be removed after the completion of the work. The contractor has to quote his bid keeping the above in view.

23 POSSESSION PRIOR TO COMPLETION

The Engineer-in-charge shall have the right to take possession of or use any completed part of work or works or any part thereof under construction either temporarily or permanently. Such possession or use shall not be deemed as an acceptance of any work either completed or not completed in accordance with the contact, within the intent of clause-28 of APSS except where expressly otherwise specified by the Engineer-in-charge.

24 ACCESS TO THE CONTRACTOR'S BOOKS:

Wherever, it is considered necessary by the Engineer-in-charge to ascertain the actual cost of execution of any particular extra item of work supply of the plant or material on which advance is to be made or of extra items or claims, he shall direct the contractor to produce the relevant documents such as pay rolls, records of personnel, invoices of materials and any or all data relevant to the item or necessary to determine its cost etc., and the contractor shall, when so required, furnish all information pertaining to the aforesaid items, in the mode and manner that may be specified by the Engineer-in-charge.

25 POWER SUPPLY:

25.1 The contractor shall make his own arrangements for utilization of power from the Electricity Board in his own cost. The contractor will pay the bills of Electricity Board for the cost of power consumed by him.

25.2 The contractor shall satisfy all the conditions or rules requires as per Indian Electricity Act 1910 and under Rule-45 (i) of the Indian Electricity Rules, 1956 as amended from time to time and other pertinent rules.

26. PRIORITY:

The contractor should make his own arrangement for obtaining the priority certificate, in respect of items required in connection with the execution of the work. The Department will render necessary assistance in this regard.

27. FIRE FIGHTING MEASURES:

27.1 The contractor shall provide and maintain adequate firefighting equipment and take adequate fire precaution measures for the safety of all personnel and temporary and permanent works and shall take action to prevent damage/destruction by fire of trees, shrubs and grasses.

27.2 Separate payment will not be made for the provision of

28. APPROACH ROADS AND ROADS IN WORK AREA :

28.1 In addition to existing public roads and roads constructed by the Government, if any, in work area all additional approach roads and the work area and camp required by the contractor shall be constructed and maintained by him at his own cost.

28.2 It is possible that work at, or in the vicinity of the work site will be performed by the Government or by other contractors engaged in work for the Government during the contract period. The contractor shall without charge permit the Government and such other contractor and other workmen to use the access facilities including roads any other facilities, constructed and acquired by the contractor for use in the performance of the works.

28.3 The contractor’s heavy construction traffic or tracked equipment shall not traverse any public roads or bridges unless the contractor has made arrangement with the authority concerned. In case contractor’s heavy construction traffic or tracked equipment is not allowed to traverse any public roads or bridges and the contractor is required to make some alternative arrangements, no claim on this account shall be entertained.

28.4 The contractor is cautioned to take necessary precautions in transportation of construction materials to avoid accidents black and white stripe Fire prevention measures and all cost of such work shall be deemed to have been included in the contract.

29. **TEMPORARY DIVERSIONS (Works in Highways)**

29.1 The contractor shall at all-time carry out work on the highways in a manner creating least interference to the flow of traffic while consistent with the satisfactory execution of the same. For all works involving improvements to the existing highway, the contractor shall in accordance with the directions of the Engineer in charge provide and maintain during the execution of the work a passage for traffic, either along a part of the existing carriage way under improvement or along a temporary diversion constructed close to the highway.

29.2 If the opinion of the Engineer in charge is not possible to pass the traffic on part width of the carriage-way for any reason, a temporary diversion close to the highway shall be constructed as directed. It shall paved with the materials such as hard mourn, gravel or stone, metal to the specified thickness as directories by the Engineer. In all cases, the alignment, gradients and surface type of the diversion including its junctions, shall be approved by the Engineer in charge before the highway is closed in traffic.

29.3 The contractor shall take necessary measures for the safety of traffic during construction and provide erect and maintain such barricades, including signs, makings, flags lights and information and protection of traffic approaching or passing through the section of the highway under improvement. Before taking up any construction, an agreed phased programme for the diversion of traffic on the highway shall be drawn up in consultation with the Engineer-in-charge.

29.4 The barricades erected on either side of carriage way portion of the carriage way closed to traffic, shall be of strong design to resist violation and painted with alternative black and white strips : Red linters or warning lights of similar type shall be mounted on the barricades at night and kept light throughout from sunset to sunrise.

30. **RAMPS**

Ramps required during execution may be formed wherever necessary and same are to be removed after completion of the work. No separate payment will be made for this purpose.

31. **MONSOON DAMAGES**

Damages due to rain or flood either in cutting or in banks shall have to be made good by the contractor till the final section is handed over to the Department. The responsibility of desalting and making good the damages due to rain or floor rests with the contractor. No extra rate is payable for such operations and the contractor shall therefore, have to take all necessary precautions to protect the work done during the construction period.

32. a) The contractor shall, at all times during the continuance of the contract, comply fully with all existing acts, regulations and bylaws including all statutory amendments and or enactments or state or central government and other local authorities and any other enactments, notification and acts that may be passed in future either by the state or the central government or local authority, including Indian workmen's compensation Act 1923. Contract Labour (Regulation and

Abolition) Act., 1970. The child Labour prohibition and regulation workers Act 1986 and equal remuneration Act 1976. Factors Act., minimum wages Act 1948, provident fund regulations, employees provident fund act 1952, schemes under same act., the building and other construction (Regulation of employment and condition of service) Act 1996, the Cess Act 1996 and also applicable Labour regulations, health and sanitary arrangement for workmen, insurance and other benefit and shall keep department identified in case any action is commenced by competent authorities for contravention by the contractor.

b) If the department is caused to pay or reimburse, such amounts as may be necessary to cause or observe, or for non-observance of the provisions stipulated henceforth on the part of the contractor, the Executive Engineer shall have the right to deduct from any monies due to the contractor, his amount of performance security or recover from the contractor personally any sum required or estimated to be required for making good the loss or damage suffered by the department, responsibility in connection with the employees of the contractor, who shall in no case, be treated as the employees of the department at any point of time.

33. **HEALTH AND SANITARY**

Medical rules for the provision of health and sanitary arrangements for worker employed by the departments and contractors.

The camp and hutting accommodation water supply and sanitary arrangement for the workers and Labour employed on the works shall be made by the contractor at his own cost and shall strictly confirm to the requirements and to the satisfaction of the Medical and Sanitary authorities of the project and in accordance with the medical RULES LISTED BELOW:

1. The contractor's special attention is invited to clauses 37, 38, 39, 50 and 51 of preliminary specifications to the APSS and he is requested to provide at his own expense the following amenities to the satisfaction of the Executive Engineer.

11. **First Aid** : At the work site there shall be maintained in a readily accessible place first and appliances and medicines including an adequate supply of sterilized dressing and sterilized cotton wool. The appliances shall be kept in good order. They shall be placed under the charge of responsible person who shall be readily available during working hours.

Drinking Water : Water of good quality fit for drinking purpose shall be provided for the working people on a scale of not less than 3 gallons per day.

Where drinking water is obtained from an intermittent public water supply, each work place shall be provided with storage tank where such drinking water shall be stored.

Every water supply storage shall be a distance of not less than 15 m from any latrine drain or other source of pollution. Where water has to be drawn from an existing well which is within such proximity of latrine, drain or other source of pollution, the well shall be properly chlorinated before water is drawn from it for drinking. All such wells shall be entirely enclosed in and be provided with a trap door which shall be dust and water proof.

A reliable pump shall be fitted to each covered well and the trap door shall be kept closed and opened only for cleaning for inspection which shall be done at least once in a month.

Washing and bathing places : Adequate washing and bathing place shall be provided separately for men and women such places shall be taken in clean and drained conditions, bathing and washing should not be allowed in or near any drinking water well.

Latrines and Urinals : These shall be provided within the premises of every work place, latrines and urinal in an accessible place and the accommodation separately for each of them shall be on the following scale or as directed by the Executive Engineer in any particular case.

		Seats
1.	Where the number of persons employed does not exceed 50	2
2.	Where the numbers of persons employed does not exceed 50 but not 100	3
3.	or every additional 100	3

If women are employed, separate latrines and urinals, screened from those for men shall be provided on the same scale. Except in work places provided with water flushed latrines connected with water borne sewage system, all latrines shall be cleaned at least four times only. The excreta from the latrines shall be deposed off at the contractor's expenses in out of way pits approved by the local public health authority. The contractor shall also employ adequate number of scavengers and conserve staff to keep the latrines and urinal in a clean condition which shall be cleaned at least four times daily.

Rest Shelters : At the work site there shall be provided free of cost. Two suitable sheds one for meals and the other for use of Labour shall be provided.

Creches : At every work place at which 50 or more women workers are ordinarily employed there shall be provided two huts of suitable size for the use of children under the age of 6 years belonging to such women one hut shall be used for important games and play and other as their bed rooms. The hut shall not be constructed on a lower standards than the following.

1. Thatched roof.
2. Mud floors and walls.
3. Planks spread over the fund floor and covered with matting. The use of the huts shall be restricted to children, their attendants and mothers of the Children.

Canteens : A cooked food canteen on a moderate scale shall be provided for the benefit of workers, if it is considered essential. Sheds for workmen. The contractor shall provide at his own expense sheds for housing the workmen. The shed shall be on a standard not less than cheap shelter type to live in which the work people in the locality are accustomed to a floor area of about 2m x 1.5m per two persons shall be provided. The sheds are to be in rows with 12.5 m clear space between sheds and 19m clear space between rows if conditions permit. The work people's camp shall be laid in units of 400 persons each unit to have a clear space of 12m all round.

Land should be acquired temporarily for storing contractor's materials or for his staff. The contractor should make his own arrangements for temporary acquisition of land required for storing his materials and for housing of this staff at his expenses.

34. LABOUR CAMP AND CONTRACTOR'S STAFF COLONY

I. The Executive Engineer will hand over the site for the contractor and his Labour. All areas of operation including those for his staff and Labour colony's handover to the contractor shall be cleared and handed back as soon as his contract for the work is over. The contractor at the time of handing over back shall make good to the satisfaction of the Executive Engineer any damage or alterations made to the areas or other property or land handed over to him for the purpose of the project work. Temporary structures may be erected by the contractor for storage sheds, offices, residences etc., For noncommercial use, with the permission of the Executive Engineer on the land handed over to him at his own cost. At the completion of the work these structures shall be dismantled site cleared and handed over to the Executive Engineer. The land required for providing amenities will be given free of cost from Government lands if available otherwise the contractor shall have to make his own arrangements.

II. Labour importation and amenities to Labour and contractor's shall be to the contractor's account. his quoted bid shall include the expenditure towards importation of Labour amenities to Labour and staff;

35. TRANSPORTATION OF LABOUR

The contractor shall make his own arrangements for the daily transportation of the Labour and staff from Labour camps and staff colonies to the work spot and no Labour or staff of the contractor shall stay at the work spot. No extra payment will be made to the contractor for the above transportation of the Labour and his quoted bid to the work shall include the transportation charges of Labour from colonies to work spot and back.

II. The contractor will at all times duly observe the provisions of employment of children Act XXVI of 1938 and any enactment or modification of the same and will not employ or permit any person to do any work for the purpose under the provisions of this agreement in contravention of said Act. The contractor hereby agrees to indemnify the department from and against all claims, penalties which may be suffered by the department or any person employed by the department by any default on the part of the contractor in the observance and performance of the provisions of the employment of children act XXVI of 1938 or any enactment or modification of the same.

As per Govt. memo No. 721/Gr (i)/81-35, Dt. 17-11-87, the contractor shall obtain the insurance at his own cost to cover the risk on the works to Labour engaged by him during period of execution against fire and other usual risks and produce the same to the Executive Engineer concerned before commencement of work.

36. SAFETY MEASURES

1. The contractor shall take necessary precautions for safety of the workers and preserving their health while working in such jobs which require special protection and precautions. The following are some of the measures listed but they are not exhaustive and contractor shall add to and augment these precautions on his own initiative where necessary and, shall comply with directions issued by the Executive Engineer or on his behalf from time to time and at all times.

2. Providing protective foot wear to workers in situations like mixing and placing of mortar or concrete sand in quarries and places where the work is done under such wet conditions.
3. Providing protective head wear to workers at places like underground excavations to protect them against rock falls.
4. Providing masks to workers at granulators or at other locations where too much fine dust is floating about and sprinkling water at frequent intervals by water houses in all stone crushing area and storage bins abate to dust.
5. Getting the workers in such jobs periodically examined for chest trouble due to much breathing into fine dust. The Executive Engineer shall have the right to call for such record as required to satisfy himself on the payment of fair wages to the laborers and shall have the right to deduct from the contract amount a suitable amount for making good the loss suffered by the workers by reason of the 'fair wages' clause to the workers.
6. The contractor shall be primarily liable for all payments to be made and for the observance of the regulations framed by the Government from time to time without prejudice to his right to claim indemnity from his sub-contractors.
7. As per contract Labour (Regulation and abolition) Act, 1970 the contractor has to produce the license obtained from the licensing officers of the Labour department along with the tender or at the time of agreement.
8. Any violation of the conditions above shall be deemed to be a breach of his contract.
9. Equal wages are to be paid for both men and women if the nature of work is same and similar.
10. The contractor shall arrange for the recruitment of skilled and unskilled Labour local and imported to the extent necessary to complete the work within the agreed period as directed by the Executive Engineer in writing.

37. FAIR WAGE CLAUSE :

1. The contractor shall pay not less than fair wages to laborers engaged by him on the work.
2. 'Fair' wages means wages whether for time or piece work notified by the Government from time to time in the area in which the work is situated.
3. The contractor shall not withstanding the revisions of any contract to the contrary cause to be paid to the Labour, in directly engaged on the work including any Labour engaged by the sub-contractor in connection with the said work, as if the laborers had been directly employed by him.
4. In respect of Labour directly or indirectly employed in the works for the purpose of the contractor part of the agreement the contractor shall comply with the rules and regulations on the maintenance of suitable records prescribed for this purpose from time to time by the Government. He shall maintain his accounts and vouchers on the payment of wages to the laborers to the satisfaction of the Executive Engineer.
5. The Executive Engineer shall have the right to call for such record as required to satisfy himself on the payment of fair wages to the laborers and shall have the right to deduct from the contract amount a suitable amount for making good the loss suffered by the worker or workers by reason of the 'fair wages' clause to the workers.
6. The contractor shall be primarily liable for all payments to be made and for the observance of the regulations framed by the Government from time to time without prejudice to his right to claim indemnity from his sub-contractors.

7. As per contract Labour (Regulation and Abolition) Act 1970 the contractor has to produce the license obtained from the licensing officers of the Labour department along with the tender or at the time of agreement.

8. Any violation of the conditions above shall be deemed to be a breach of his contract.

9. Equal wages are to be paid for both men and women if the nature of work is same and similar.

10. The contractor shall arrange for the recruitment of skilled and unskilled Labour local and imported to the extent necessary to complete the work within the agreed period as directed by the Executive Engineer in writing.

I offer to carry out the work Part-I @estimate amount of Rs……(or) percentage excess @.....% (or) percentage less ……..……% in words (…… ……(or) percentage excess and Part- II as per the amount noted in Bill of quantities.

SECTION -7
GENERAL TECHNICAL SPECIFIACTION FOR GATES
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7.1 General technical specifications.

7.1.1 General Workmanship:

Workmanship shall be first class, and all work shall be done by workmen skilled in their various trades and completed in a through workman like manner and to the best modern practice. Machining fits and finish shall confirm with the best modern shop practice. Like parts and spare parts shall be interchangeable wherever possible. Machining of renewable parts shall be started so that replacement made to drawing size may be readily installed. The contractor shall warrant all material and workmanship furnished by him to be free from injuries and defects. He shall replace, free of cost to owner, any defective material or shop workmanship discovered.

All fabricated work under this contract shall be in accordance with specifications, which meet the purchaser's approval. All member shall be free of twists, bends or other deformations, and all surfaces that will be contact shall be thoroughly cleaned before assembling. Parts shall be adjusted to line and fits and shall be firmly bolted or otherwise held securely together so that the surface are in close contact before reaming, drilling or welding is commenced. If weight limitations and transport clearance permit the gate anchorage and miscellaneous assemblies embedded parts shall be fabricated in to sub assemblies. The contractor shall submit with his bid a drawing showing the subassemblies, with which he prepare to fabricate the gates, hoists, anchorages and miscellaneous assemblies. All sub- assemblies shall be clearly identified by proper marking which shall confirm to making on the contactor's drawing.

7.2 Fabrication of structure steel:

Structure steel work for the gates shall confirm to the requirement for renamed work as here in after specified. Fabrication shall comply with the following:

Straightening of member:

Before being laid off or worked in any manner, structural steel shall be straight, without twists, bends or kinks and if straightening is necessary, it shall be done by a method which shall not injure the metal. Heating or hammering will not be permitted. To ensure good welding and fitting of member, all steel surfaces to be welded shall be cleared of dirt, mill scale and rust prior to fabrication.

Shearing, chipping and gas cutting:

Shearing, chipping and gas cutting shall be performed carefully and all portions of the work, which will be exposed to view, shall present a neat appearance. Finishing of sheared or cut edges of plates or shapes will not be required except as noted in these specifications. Gas cutting will be permitted subject to approval to the owner and in no case leaks shall be transmitted into metal thorough a flame cut surface in case of welds.

7.3 Edges to be welded :

The edges of plates and shapes to joined by welding shall be properly formed to suit the type of welding selected. Where plates and shapes have been sheared, the edges to be joined by welding shall be machined or chipped to sound metal. Plates and shapes to be filed weld shall have their edges prepared in the shop for the type of weld selected.

Bent plates and shapes:

Where bending or forming of plates or shapes is required, the plates or shapes shall be bent by clod forming. Heating and hammering to correct bends will not permitted.

7.4 Drilling and Reaming:

Holes shall be accurately located and drilled or renamed perpendicular to the face of the member and if necessary, shall be drilled to a template. Countersinking wherever required shall be done carefully and to the depth of the head. Open holes in material 18 mm or less in thickness shall be sub drilled or sub punched before assembly and reamed during assembly. Holes in structural steel of more than 18mm in thickness shall be drilled 3mm smaller than the nominal diameter of the rivet or bolt before assembly and renamed to full size during assembly. All members shall be shop-assembled before reaming or drilling holes for filed connections.

Punching:

For sub Punching, the diameter of the punch shall be 4.5mm smaller than the nominal diameter of the rivet or bolt and the diameter of the hole shall not be more than 2.5 mm of diameter of the punch. All holes shall be clean cut without torn or ragged edges.

7.5 Holes:

All holes shall be clean, accurately spaced, cylindrical and perpendicular to the members. All holes shall preferably be drilled out. Punching may be permitted in unimportant parts provided the holes are punched 3mm less than the required size and reamed after assembly to the full diameter. Holes 20 mm are less in size shall be sub drilled or sub punched (if approved), before assembly and reamed after assembly. Holes lager in size than 20mm shall be drilled to full size during assembly or sub drilled to size during assembly. The accuracy of all holes before assembly shall be such that after assembly, a cylindrical pin 3mm less than the nominal hole size may enter perpendicular to the face of the member, without drifting in not less than 85% of any group of continuous holes in the plane. All holes shall pass a pin 3.5mm smaller than the hole size.

7.6 Fits, Tolerance and threads :

The sealing surface shall not depart more than 0.4 mm from the plane surface. The track surface shall not depart more than 0.4 mm from the plane surface. The face of guide shall not depart more than 3.0 m from plane surface. Bottom seal seat shall not depart more than 1.6 mm from the designed plane. Fits, tolerances and finish not definitely specified, shall confirm with best modern shop practice, in manufacture of finished products of similar nature. Consideration shall be given to the special nature of function of the parts and to the accuracy required to secure proper operation of the

equipment. These shall be subject to the approval of the Engineer-In-Charge. In general the tolerances on the shafts, bearings etc., shall confirm to IS: 919 –(Latest). All threads shall confirm to IS:4218 – Part III- (latest).

Temporary field connections:

The contractor shall provide suitable means for handling and holding section of the gates and embedded parts in proper positions during field erections and shall also furnish a sufficient number of erection bolts, plus an excess of 15%.

7.7 Preparation of Field Welding :

All necessary milling, leveling and other preparations of joints or splices to e made by field welding shall be done in the shop. A field – Welding schedule shall be worked out by the contractor and submitted to the department for approval.

Skin plates :

All skin plate welds shall be continuous and water tight and shall develop full strength of the plates joined. Welds in contact with rubber seals shall be GROUND FLUSH all corners and corner welds in contact with rubber seals shall be rounded. The bottom edges of the gates shall be milled or faced only after the completed skin plate sections have been assembled in the shop. As in alternate to milling or facing the contactor may flame out and guide the bottom edges of the assembled gates.

Pins and Axles:

Pin and axles shall be finished to the dimensions, Tolerance of the type of the finish indicated on the drawings and shall be straight and free from flaw, conforming to the best modern shop practices.

7.8 Pin Holes :

Pinholes shall be bored to proper dimensions and tolerances shown on the approval drawings and shall be straight smooth and at right angles to the axis of the member. The boring shall be done after the component parts of the member have been assembled and stress relieved where required.

7.9 Wheel bearing and other bearing :

Wheel bearing shall be of the type and load rating shown on the drawings. Wheel and pin details and dimensions governed by the bearings shall be in strict accordance with the recommendations of the bearing manufacturer. All bearings hall be properly aligned and to the dimensions and tolerance shown on the approved drawings.

7.10 Casting :

All castings shall be sound, clean and free from blowholes or other defects. No defects shall be remedied and paint or oil applied to the surface of any casting until it has been inspected by the owner or his authorized representative.

7.11 Stress Relieving of Casting :

After completion of castings, each piece shall be stress relieved by bringing the entire member to a temperature between 1100^0 F and 1200^0 F and holding temperature for a period of two hours. Then the member shall be in the annealing furnace while the temperature is being reduced slowly to below 600^0 F after which it will be allowed to cool slowly in a still atmosphere.

7.12 Turned and fitted bolts :

In cases where bolts have to be used but strength of a riveted connection is required, this can be obtained by using special bolts in specially drilled holes to a drilled holes to a driving fit. The bolts are specially made from black round bars and turned down to the exact diameter. The inside of the head and flat face of the nut shall be machined. The hole must be accurately drilled and renamed with a clearance of not more than 0.25 mm. The holes after the assembly of parts must be true throughout the thickness of all parts and perpendicular to the axis of the member. The washers used for these bolts shall be machined on both faces.

7.13 Patterns :

The price bid in the schedules shall include the cost of all necessary patterns. Patterns will remain the property of the contractor. Care shall be taken to avoid sharp corners or abrupt charges in cross section and ample fillets shall be used. The dimensions and thickness of casting shown on the drawings are minimum thickness and dimensions. The manufacture shall add such draft and increase in pattern thickness as will confirm to the standard foundry practice and may be necessary to ensure that dimension of thickness of the finished castings will be same as shown on the drawings.

7.14 Machine finished :

When finished surface are not specified on the drawing, the class of finish shall be the most suitable for the [art to which it applies and shall be as per IS 3073. The general finish requirement are defined as follows:

a) Very fine finish :

The surface smoothness shall be comparable to a lapped, honed or finely ground finish or the surface shall be polished if so specified. The grade of finish is required for surface with very close tolerance and for surfaces in sliding contact which must be very smooth to reduce bearing of friction, for highly loaded bearing surfaces or for surfaces which must be polished for appearance.

b) Smooth finish :

The surface smoothness shall be comparable with best finish obtaining using standard machine tools and shall be practically free from tool marks. This grade of finish is required for surface with close tolerances and for surfaces in ordinary sliding contact.

c) Average finish :

The surface smoothness shall be comparable to a commercial finish such as is normally obtained by ordinary machining methods, and slight tool marks will be allowed. This grade of finish is required for ordinary work.

d) Rough finish :

The surface smoothness shall be of a degree necessary only to ensure a uniform surface, true to dimensions and fairly coarse tool marks will not be objectionable. This grade of finish is used primarily for surfaces which are not in contact but which require finish for dimensional accuracy.

7.15 Riveting :

Rivets shall be driven by power riveters of either compression or manually operated type, employing pneumatic, hydraulic or electric power. After driving they shall be tight and their heads shall be in full contact with the surfaces and their finished heads shall be of approximately hemispherical shape of uniform size throughout the work for the same size rivet, neatly finished and concentric with the holes. Rivets shall be heated uniformly to a temperature not exceeding 1065^0 C. All shop driven rivets with in a distance of 45 cm from a shop weld joint shall be driven after the welding is completed.

Recouping and caulking of loose or defective rivets will not be permitted. In removing the defective rivets, care shall be taken not to injure the adjacent metal and if necessary, they shall be drilled out.

7.16 Welding :

7.16.1 Welding preparation :

Member to be joined by welding shall be cut accurately to size, and where required, shall be rolled or pressed to proper curvature in accordance with the dimensions shown on the drawings. The edges of the members to be joined by welding shall be sheared, flame cut or machined to suit the required type of welding and to allow through penetration. The cut surface shall expose sound metal free from laminations, surface defects caused by shearing off, flame cutting operation or other injurious defects. The surfaces of the plates to be welded shall be free from slag, rust, grease, paint and other foreign matter for a distance of atleast 2 inches back from the edge of the weld. In assembling and during welding the component parts of the built up members shall be held in place by sufficient clamps or other adequate means to keep all parts in proper position.

All material above 25 mm in thickness shall be preheated before welding is commenced. Before the commencement of welding, the contractor shall submit a complete programme for welding sequence and distortion control for approval of the department.

7.17 Welding :

All welding shall be performed by electric arc process using coated electrodes or other means whereby the atmosphere is excluded from the molten metal and where applicable automatic machine with correct procedure control shall be used. All welding performed in the fabrication and erection of steel structures and equipment shall confirm to the requirement of IS : 816 – 1956 except as modified in the specifications and shall be performed by a code – qualified welder.

After being deposited, welds shall be cleaned of slag or flux and shall show uniform sections, smoothness of weld metal, feather edges without overlap and freedom from porosity and clinkers. Visual inspection at the edges and ends of welds shall indicate good fusion with the base metal. When weld metal is deposited in successive layers, Such layer except the last layer shall be cleaned moderately with a tool before the next layer is applied. Particular care shall be taken in aligning and separating the edges of the members to be joined by butt welding so that complete penetration and fusion at the bottom of the joint will be assured. All pinholes, cracks and other defects shall be repaired by chipping or grinding to sound metal and re welding. Where fillet welds are used, the members shall fit closely and shall be held together during welding. The welding rods used for manual welding shall be of heavily coated type and shall be suitable for all position welding where required.

In welding precautions shall be taken to minimize stress due to expansion or contraction and distortion due to heat by using the proper sequence in welding by penning the welds while hot or by other satisfactory methods. Corrections of distortion by blows after welding is completed and the piece is cold will not be permitted. Specific requirement for butt joints and fillet joints are given below.

Butt Joints:

In principal butt joint should be made with back run. The joint in the skin plate shall be staggered and preferable located near the point of contra flexure. The edges of the skin plate shall be prepared in shop . Skin plate joined by butt welding shall be without any black plate so as to facilitate radiography joints, if required in horizontal girder and hoist bridge girders shall be located sufficiently away from location of maximum bending moments. They shall also be butt welded in such a way to facilitate radiographic testing of welded joints.

All butt welds in gate components shall be 100% radio graphically tested for their soundness. However the extent of radiography for joints in skin plate alone shall be limited to 10 % of total weld length suitably selected. However other tests like ultrasonic, dye penetrate or magnetic particle test should be conducted for full length of butt joints in the skin plate. All butt joints in the Hoist Bridge shall also be 100 % radio-graphically tested for their soundness. Dye penetrate test should be carried out after each pass of weld.

7.18 Fillet joints:

All fillet welds shall be continuous. For the main members, no fillet welding should be made on the members whose thickness differ substantially. Fillet welds at T joints should be made, as a rule on each side of the joint. Unless it is otherwise agreed due to some practical reasons all fillet welds shall be tested ultrasonically for soundness.

All skin plate welds shall be continuous and water tight and shall develop the full strength of the plate joint. Welding electrodes shall confirm to the applicable provisions of the I.S.I. Specifications

The contractor shall prepare a shop and field welding procedure including stress relieving, annealing and preheat requirement submit this procedure to the Engineer – in - charge for approval. The procedure shall be in accordance with the best modern Welding practice and shall be such as to minimize residual stresses and distortions of the finished members of the structure. Approval of any procedure, however, will not relieve the contractor of the sole responsibility for producing the finished product meeting all requirements of these specifications. Welds in contact with rubber seals shall be rounded.

7.19 **Qualification of Welding Process**:

A specification of welding process that is proposed to be used shall be established and recorded and if required a copy of such process specification, together with certified copies of report of results of tests made in accordance with the process specification shall be furnished. The qualification of the welding process shall be atleast equal to that required buy the standard qualification procedure of the India Standards and the Minimum requirements, of the tests shall be atleast as stated in the said standard qualification procedure.

7.20 Qualification of Welders:

The contractor shall be responsible for the quality of work performed by his welding staff. All welders assigned to the work shall have passed a qualification test for welders. If at any time, the work
of any welder appears questionable, such welder shall be required to pass additional qualification tests to determine his ability to perform the type of work on which he is engaged.

7.21 PAINTING:

General:

The painting of the plant shall the preparation of the metal surfaces, paint application, protection and drying of the paint coatings as well as the supplying all tools, labour and materials necessary for the entire painting work. The painting work shall conform with IS 14177-1994 Guidelines for painting system for hydraulic gates hoists.

All paints, painting materials and accessories for painting shall be supplied by the contractor and shall be included in the price bid. The paints proposed by the contractor must be approved by the representative of the purchaser before application of the same. The analysis in respect of paint properties, paint composition and performance requirements of the paints shall be submitted by the contractor for examination and approval. The painting and surface preparation shall confirm to the relevant Indian specification IS 14177-1994. On the subject decision of the purchaser for the applicability of the recommendations contained in various clauses of this standard shall be final and binding on the contractor.

7.22. Preparation of surface:

Surface Preparation shall be accordance with the following procedure.

I. Weld spatters or any other surface irregularity shall be removed by suitable means before cleaning.
II. All oils, grease and dirt shall be remove from the surface by use of clean mineral spirits or white gasoline (lead free) and clean wiping material except that for surfaces which required coal tar coatings the cleaning solvent shall be Xylol
III. Following the solvent cleaning, the surfaces to be painted shall be cleaned of all rust, mill scale and other tightly adhering objectionable substances shall be removed by sand blasting or grid blasting to uniform bright base metal. Any grit or dust remaining from the cleaning operation shall be completely removed from the surfaces by wire brushing, air blowing, suction or other effective means before the surface is painted.
IV. In the event that rust forms on the surface becomes otherwise contaminated in the interval between cleaning and painting. re-cleaning will be required.
V. Surfaces of Stainless steel, Nickel. Bronze and machine surfaces adjacent to metal work being cleaned or painted shall be protected by making tape or by other suitable means during the cleaning and painting operations.
VI. Primer shall be applied as soon as the surface preparation is complete and prior to the development of surface rusting time gap between the application of primer and surface
preparation shall normally not exceed six hours. In case there is considerable time gap, the surface should be re-blasted prior priming

7.23. Shop painting details:

1. Stainless steel and bronze surfaces shall only be cleaned out but not painted.

2. All surfaces of the embedded parts which are to come in contact with concrete shall be cleaned as mentioned above and given two coats of cement latex to prevent rusting during shipment and while waiting installation.

3. One coat of Zinc rich primer shall be applied to all unfinished surfaces of the embedded parts which are to be exposed to atmosphere or water to obtain a dry film thickness of 75 Microns, which shall be followed by two coats of coal tar blended epoxy resin paint to get dry film thickness of 150 microns in each coat. Total dry film thickness of paint shall not be less than 350 microns. Time interval between the coats shall be 24 Hours.

4. All finished surfaces of ferrous metal including bolts, screw threads, etc that will be exposed during shipment or while awaiting installation shall cleaned and given a heavy uniform coating or gasoline soluble list preventive compound or equivalent.

5. Two coats of zinc phosphate primer shall be applied to all exposed surfaces of rope drum hoist, hoist support structure, hoist frame exposed to atmosphere or water to obtain a dry film thickness of 75 microns, which shall be followed by two finishing coats of aluminum paint to obtain dry film thickness of 25 microns per coat. The total dry film thickness of all coats including primer coating shall not be less than 125 microns. The interval between the coats shall be 24 hours

7.24 Measures during painting

1. Any bare spots shall be re-coated with additional application of primer.

2. All runs, sags, floods, or drips shall be removed by scrapping and cleaning. The cleaned area should be retouched or all such defects shall be remedied by re-blasting or re-priming.

3. Special attention should be given to good coverage on rivets, welds and sharp edges and covers.

4. Suitable measures shall be taken to protect the applied primer from contact with rain, fog. dust, mist, or other foreign matter until completely hardened and next coat is applied.

5. The air temperature at the time of application must not be below 10^0 C and relative humidity must not be above 90%.

7.25 Application procedure

All paints and coating materials shall be in a homogeneously mixed condition at the time of application and shall not be thinned except as here in after specifically provided. Warming of the paint shall be performed by the means of hot water bath. All surface to which the paint shall be apply immediately after cleaning and except otherwise specifically

provided shall be applied by either brushing or by airless spray. When paint is applied by spraying, a mechanical agitator type of paint pot shall be used. Means shall be provided for removing all free oil and moisture from the air supply line of all spraying equipment. Each coat of paint shall completely cover the surfaces and shall be free from runs, sags, pinholes. Each coat of paint shall be allowed to dry or harden thoroughly before the succeeding coat is applied. All paint shall be applied by skilled workers in a workmanlike manner. Paint shall not be applied during damp weather and on the surfaces which are not

entirely free from moisture, Rust preventive compound shall be applied by any convenient method to ensure complete coverage of heavy coating A After the final application, the paint film shall be allowed to cure at least for 7 days.

7.26 Field painting :

The painted metal work shall be handled with care so as to preserve the shop coats. The area of the shop paint, which has been damaged during transport shall be cleaned to base metal and repainted. Pint applied to such areas shall be of the same type as used originally in shop painting.

Catalogue operating/ maintenance instructions:

Six sets of catalogue indicating the complete list of parts and operating instruction in the English language, which may be needed or useful in operation , maintenance, repair, dismantling or assembling and for the repair and identification of parts for ordering the replacement, shall be supplied by the contractor to the purchaser. Such catalogue shall be in hard cover bound books and should have suitable jackets or thick polythene paper.

Instruction plates :

All gauges, meter and other instruments etc., shall have dials or scales calibrated in metric system. All nameplates, instruction plates, warning signs etc., shall be in English as well as in Telugu. All marking used shall be submitted to the purchaser for approval before the equipment is marked or labeled.

7.27 Shop assembly :

All components shall be shop assembled so as to allow for adjustment of various dimensions to make them confirm to designed dimensions, fits, tolerance, surface finishes, clearances etc., In the event that it is not possible to complete the gate leaf or any other component in the shop, they will be accurately assembled in the shop using temporary connections and various critical dimensions shall be verified. The embedded metal work to be furnished under this specification shall be shop assembled to the extent possible. Special care shall be taken in all places of work affecting the strength and rigidity of anchorages since the correct operations and stability of gates are largely dependent upon the strength and accuracy of these parts. The horizontal and vertical girders shall be completely fabricating in the shop.

7.28. Unit marking, Match marking and Transportation Designation :

Each parts of the gates, embedded parts, hoist, gantry and lifting beam which is to be transported as a separate piece shall be marked to show the unit of which it is a part and match marked to show its relative position in the unit to facilitate assembly in the field. Unit marks and match marks shall be made with heavy steel stamps and paint. Each piece, Subassembly or package transported separately shall be labeled or tagged with transport designation consisting of the specification number and the mark number of such pieces, number of parts groped in such sub – assemblies or contained in the package.

7.29 Weights.

Before dispatch the contactor shall determine (by the most accurate means available) the net weight of each piece of assembly that is to be shipped as a unit exclusive of boxes, crates or kits. The particulars listing the net weight shall be painted on the respective pieces of assemblies or stated on the tags attached there to.

7.30 Packing :

All parts shall be prepared to dispatch so that slings for handling may be attached readily while parts are to be moved. Where it is unsafe to attach slings to the box, parts shall be packed with slings attached to the parts and slings shall project through the box or crate so that attachment can be made easily. All parts shall be properly secured and packed to withstand handling during transportation. All packing shall allow for easy removal and checking at site. Special precautions shall be taken to prevent rusting of steel and iron parts during transit.

Suitable methods proposed to be adopted for protection against moisture shall be subject to the prior approval of the purchaser. Each bale or packing is to contain packing note quoting number and date of contractor's order and the name of the office placing the order.

After delivery of material at site, all packing shall become the property of the purchaser. Notwithstanding anything stated in this clause the contractor shall be entirely responsible for loss, damage or depreciation shall be insured for loss or damaged during transit at the cost of the contractor.

7.31 Erection :

The equipment covered by these specifications shall be furnished and erected by the contractor at the project site. The contractor shall be required to furnish all erection drawing. The contractor shall prepare a complete erection procedure, which shall describe the series of operation to be carried out and the method to be used, the measurement ti be taken and the tolerance to be met in erection and alignment of the equipment. Such procedure shall have the approval of the purchaser prior to the commencement of the fabrication and when approved shall from a part of the specification furnished by the contractor.

7.32 Deleted

7.33 Installation of stop log units:

All the components of stop log unit shall be erected perfectly giving due cognizance to the unit and match marks on the components. All components shall be designed and assembled to fit snugly and shall be watertight. It is desirable to avoid the flood period to perform the erection of stop logs should it be necessary to do so due precautions be taken for measures against flood since the stop logs may be submerged in water sustaining damages of the half erected stop logs may disturb the water flow causing damages to the civil structure.

7.34 Deleted

7.34.1 Erection personnel :

Except for the concreting, skilled as well as unskilled personnel shall be arranged by the contractor for erection of the equipment covered in these specifications.

7.34.2 Tools & Tackles :

The contactor shall provide all tools & tackles used in the above erection work.

7.35 Inspection, Testing and final acceptance :

Place of Manufacture & Inspection

The tender shall establish work shop as nearer to the site possible state in his tender the place of manufacture testing and inspection of various portions of the work included in the contract. Authorized representative of the purchaser may be present at the time of any all tests and the tenderer shall provide all necessary facilities for the same. Representation of the purchaser shall be also entitled to access to tenderers sub-contractor's work at any time during the working hours for the purpose of inspecting the manufacture of equipment and material.

All supplies (which include without limitation raw material components, intermediate assemblies and end products) shall be subject to inspection and test by the purchaser to the extent practicable at all times and places. Inspection shall be carried out in accordance with relevant IS.

If any inspection or test is made by the purchaser in the premises of the contractor or sub contractor, the contactor without additional charges shall provide all reasonable facilities and assistances for the safety and convenience of inspectors in the performance of their duties. If one the request of the purchaser, inspectors in the performance of their duties. If one the requests of the purchaser, inspection or tests made at a place other than the premises of the contractor or sub contractor of the contractor, it shall be at the expenses of the purchaser except of otherwise provided in the contact provided that in case of rejection the purchaser shall no to be liable for any reduction in value of samples used in connection with such inspection and test. All inspection and tests by the purchaser shall be performed in such a manner as not to unduly delay the work. The purchaser reserves the rights to charge the contractor any additional cost of inspection and test when supplies are not ready at the time of such inspection and tests. Acceptance or rejection of the supplies shall be made as promptly as practicable after delivery except as otherwise provided in the contract but failure to inspect and accept or reject supplies shall not relieve the contractor of his responsibilities for such supplies to be in accordance with the contracts requirements.

The inspection and test by the purchaser of any supplies or lots thereof does not relieve the contractor from any responsibilities regarding defects or other failure to meet the contractor requirement which may be discovered prior to the acceptances.

Except as otherwise provided in the contract acceptance should be conclusive except as regard latent defects, fraud or such gross mistake as amount to fraud.

The contractor shall provide and maintain the inspection system acceptable to the purchaser covering the supplies hereunder. Records of all such inspection work shall be kept complete by the contractor and made available to the purchaser during the performance of the contract and for such longer period as may be specified elsewhere in the contract.

7.36 Operational tests :

The contractor shall carry out in presence of the project authorities such tests on the stop log equipment to determine the stop log unit will fulfill the function for which it has been designed and shall be repeated if necessary, until successfully carried out to the satisfaction of the purchaser. Leakage tests and operational tests shall be carried out at the convenience of the project authorities after completion of other position of work. The project authorities shall have the right to carry out such tests also where the reservoir is at level other than the designed level.

7.37 Dry test :

Operational test in dry shall be carried out as soon as possible after completion of erection. The tests shall include atleast complete traverses from the maximum raised position to the closed position. All adjustments, clearance etc., shall be checked for proper operation.

7.38 Wet tests:

These tests should simulate the actual operating conditions closely as possible. Atleast two complete traverses will be made from the fully closed position to the normal raised position of stop log unit as follow.

a. when stop logs are lowered, raise the stop logs unit to their normal open position in steps and observe the performance including the vibrations.
b. Lowering the stop log unit to the fully closed position in steps and observe the performance including the vibration.

7.39 Leakage tests :

Leakages tests shall be carried out with each stop log unit lowering on to the still before measuring the leakage. The stop log unit shall be raised or lowered several times by a meter or so in Oder to dislodge any debris that may have lodged in the side seal seats.

The leakage shall then be measured and recorded. The maximum permissible leakage shall not exceed 10 liters per meter length of periphery of sealing surface.

The Dye Penetration test has to be conducted for welding as per IS 822-1970. Otherwise the contractor shall have to replace the material or re-fabricate those items where failure has occurred in the above tests.

7.40 Final acceptance :

The final acceptance of the equipment shall be based on the following :
Quality and workmanship of the equipment.
Satisfactory operation of the equipment after erection as required under these specification.

Acceptance of various tests by the purchaser as mentioned above.

The contractor or his authorized representative may witness all the tests. On successful completion of all tests the equipment shall be accepted but all responsibilities shall remain with the supplier within the guarantee period.

7.41 Guarantee :

Within two years of the acceptance of equipment , if any parts of stop log sets and embedded parts is found defective because of workmanship or material or otherwise the contractor shall at his own expanses furnish and install new parts and material approved by the purchaser.

7.42 Failure to meet Guarantee :

Should any part of the equipment fail to meet the guarantee/ other requirement of the technical specification within the time covered by the guarantee, the purchaser may direct the contractor to proceed at once to make alternations or furnish new parts as may be necessary to meet the requirement. All expenses of the furnishing, delivering and installation new parts or making alternation to existing parts and of tests made necessary by failure of the equipment to meet the guarantee and other requirement of the technical specifications, shall be borne by the contractor. If after due notice the contractor shall refuse to correct any failure of the equipment to meet the guarantee and the requirement of the technical specification during the guarantee period, the purchaser may proceed at his own expanse to correct such failure and to collect from the contractor an amount equal to the actual expanse so incurred, including overheads and the other incidental charges.

7.43 Defective equipment :

In case any part of the equipment is found to be defective in material or workmanship or develops defects or does not otherwise meet the requirement of the specification including errors or omissions on the part of contractor on the part of contractor the following shall apply:

Defects disclosed prior to final acceptance:

Any defects in material are workmanship or other failure to meet the requirement of these specification including errors or omission on the part of the contactor, which are disclosed prior to final payment or prior to final acceptance tests, which ever occur at a later date, shall , if so directed by the purchaser, be corrected entirely at the expense of the contractor.

a) Defects discussed after acceptance :

Any latent defect not disclosed before date of final acceptance shall be corrected promptly by the contractor entirely at his expense provide that the total period during which the contractor is liable for replacement due to latent defects shall not exceed 12 months after date of final acceptance of the equipment.

7.44 Operation of unsatisfactory equipment :

The purchaser shall have the right to operate the equipment as soon as and as long as it is in operating condition, whether or not such equipment has been acceptance. Such operation by the purchaser shall not lesson or impair any express or implied warrantees concerning such equipment. All repairs or alternations required shall be made at such time as directed by the purchaser and in such a manner as will cost the minimum interruption in the use of the equipment by the purchaser.

Operation of the equipment pursuant to this section shall not reliever the contractor office responsibility to supply all equipment in complete accordance of technical specifications. While unsatisfactory articles can be taken out of service, for collection of latent defects, errors or omissions, the period of such operation of any use pending the correction of latent defects, errors or omissions shall not exceed 2 years without mutual consent of the contractor and the purchaser.

SPECIAL CONDITIONS :

1. The above rates are inclusive of all incidentals, Taxes, etc., complete and "No extra" will be paid.
2. The tender should quote his offer to do the work either @ the estimated value of work (or) @ a percentage in excess of the estimated value of work or @ a percentage less than estimated value of work both in figures and words. The percentage should be limited to two dismal digits.
3. If there is any discrepancy in between the words and figures in quoting the above percentage, the percentage quoted in words shall prevail.
4. If the contractor falls to quote his tender percentage in both words and figures, the tender will be treated as incomplete and his tender shall be rejected.
5. Additions and alteration in the Schedule of quantities, rates, amount and total amount f estimate given above will disqualify the tender.

6. Removal of sand bags of temporary ring bund, if any shall be removed by the contractor, before starting work without claiming any extra payment.

7. The Executing agency is liable to lift the old gate elements (scrap) which was not useful to Governance for furnish available at site @ Rs.22/- per kg. and the amount will be recovered.

1. The quantity specified in the schedule A is only approximate. If the department demands the contractors should supply up to a maximum of 100% in excess of the quantity specified in the Schedule A at the accepted agreement rate within 15 days of the requisition from the Executive Engineer, Godavari Head Works Division, Dowlaiswaram. Violation of these conditions will be dealt with suitably.

2. The contractor is liable to be penalized up to 5% of the volume of materials if he fails to supply within the stipulated time at the discretion of the Executive Engineer.

3. The settled tenders should be available to receive any instructions from the Executive Engineer, Godavari Head Works Division, Dowlaiswaram after 1st warning is issued.

4. If the contractor fails to supply the flood materials as stated above, the agreement will be cancelled without any notice and EMD will be forfeited to Government.

5. The contractor shall not insist for arranging payment soon after completion of work. Payment will be made as and when found are made available by the Government. The contractor should not claim any interest in case of any delay in making payment.

GENERAL SPECIFICATIONS

1.1 Recoveries to be effected from the contractors for deficient execution of work as per circular Memo No.12582/Vig-I/1/2005-1, dt.17.10.06 of the Engineer-in-Chief (R&B) Admn. & Roads , Hyderabad.

The following guidelines shall be followed in regard to maintenance of quality, quantity and penalties to be imposed for deficient execution of work on the contractor's vis-à-vis the disciplinary action to be taken against the concerned engineers

I. FORMATION

a. Density : The density of the materials shall conform to MORTH table 300-1. The earth work shall be compacted to the required density i.e., 95% for OMC.

The determination of density shall be as per IS 2720 (Part 28).

Acceptance criteria : The density test location shall be chosen only through random techniques as closer as required to yield the minimum number of test results for evaluating a day's work. At least one measurement of density for every 1000 square meters of compacted area shall be taken. The number of tests in onset of measurements shall be 6 (if Non-destructive tests are conducted it shall be double). If considerable variations are observed between individual density results minimum number of tests in one set shall be increased to 10. Control shall not be based on any one test but on the mean value of set 5-10 density determination. The mean density shall not be less than the specified density plus [1.65-(1.65/(no. of samples) 0.5)] times the standard deviation.

b. RECOVERY FROM CONTRACTOR : If any deviation is beyond the above limit, the work shall be rejected.

II. GSB / WMM / WBM

a. Thickness : The averages thickness shall be based on 5 points in a C/s for two lane and 3 points for single lane and proportionately increased for additional lanes. (At least two cross sections in Km length or less). The average thickness shall not be less than specified thickness.

b. Over size of metal : Whenever graded metal is used.

i) No oversize will be allowed over and above the range specified as per in the first sieve (top sieve).

ii) Over size in sieves other than top sieve – the difference in the rates of the metal of the specified size and next higher size in the specified grade should be recovered for that quantity of oversize metal.

iii) However if the over size in any sieve other than top sieve is found to be above 30%, metal collected should be rejected.

c. Weight : The physical requirements shall conform to MORTH table 400-6/400-10. The density of the compacted layer shall be at least 98% of the maximum dry density as determined for the material as per IS 2720 (Part 8). The weight of material (for WBM) shall not be less than the quantity specified in the data as per density of metal to be recorded prior to usage. However 10% tolerance may be permitted due to crushing of edges and corners, deviations in the measurement pit (0.5 x 0.50 m).

RECOVERIES :

1. Shortfall in thickness / quantity / weight

a) If shortfall is up to 10% in any one of the above parameter i.e., specified oversize, thickness / weight – in a KM Recovery @ twice the agreement rates to be effected for the deficiency.

b) If shortfall is between 10% and 20% in any one of the above parameter i.e., specified oversize, thickness / weight – in a KM Recovery to be effected @ thrice the agreement rates for the deficiency.

c) If shortfall is more than 20% in any one of the above parameter i.e. specified oversize thickness / weight in a KM. - the work is to be rejected and redone.

d) In case both deficiency i.e., thickness & weight of metal is noticed, the recovery shall be for the maximum of the two deficiencies.

III. SDBC / BM / DBM Bituminous items :

a. Thickness : The average thickness shall be the arithmetic mean of the difference of levels before and after construction at all grid points in that area i.e., at every 10 m c.c. longitudinally and 0.75 m and 2.75m on two lanes, 1.25 m on single lane transversely.

b. Binder quantity : The binder content shall have to be tested at the plant or mix at the time of laying. Research carried out in the country revealed that with manage of time there would be loss of bitumen in layer which may occur from day one. Further the testing procedure / sampling itself varies from laboratory to laboratory , person to person and the results are subject to efficiency of the personnel as well as equipment.

The MORTH specification gives a tolerance of ± 0.30% which infect is for the plant mix and cannot be straight away applied for tests conducted on the surface after lapse of time. The bitumen extraction tests shall have to be conducted as early as possible and in no care beyond 6 months. Considering all these aspects the variations in Binder content and recoveries to be effected are:

1. 0-10% recovery to be effected @ twice the agreement.
2. 10-15% recovers to be effected @ thrice the agreement.
3. More than 15% the layer shall be rejected and re-laid.

RECOVERIES :

1. Shortfall in thickness / quantity / weight.

a. If shortfall is up to 10% in the specified thickness / quantity / weight – Recovery @ twice the agreement rates to be effected for the deficiency in quantity.

b. If shortfall is between 10% and 20% in the specified thickness / quantity / weight – Recovery to be effected @ thrice the agreement rates for the deficiency in quantity.

c. If shortfall is more than 20% of specified thickness / quantity / weight – the work is to be rejected and redone.

As per Circular Memo.Committee of C.Es meeting/AEE2/DEE/MC/2008 dt.21.4.2008 of the Engineer.in.Chief (R&B) Admn,& N.H,A.P.Hyderabad . The recovery of the extent of under size usage percentage in execution of WMM/WBM.The following recoveries to be made from the contractors work bills as shown below.

Deficiency (in percentage) under size aggregate	Recovery
0-5	One time recovery
5-10	Two times recovery
10-15	Three times recovery
>15	Rejection of work.

IV. CONCRETE ITEMS:

The testing and tolerance shall be as per MORTH section 903.5. No deviations are acceptable in thickness of PCC / all members except concrete pavements. In case of strength requirement in which established based on concrete cores / cubes no deviation is permitted from specified strength. However if the lesser strength concrete is allowed duly satisfying design criteria the rate of lower grade concrete or equipment to the actual strength only shall be paid.

PAYMENT ADJUSTMENT FOR DEFICIENCY IN THICKNESS

Deficiencyin the average thickness of day's work	Percent contract unit price payable
Up to 5 mm	100
6 – 10 mm	87
1– 15 mm	81
16 – 20 mm	75
2– 25 mm	70

Contractor

Executive Engineer
Godavari Head Works Division
Dowlaiswaram

GENERAL :

1. The edges of the carriageway shall be correct within a tolerance of +/- 10mm.
2. The negative tolerance of top layer shall not be permitted in conjunction with positive tolerance of bottom layer.
3. The QC shall inspect the work at every stage of execution particularly before laying bituminous layers & during execution of BT layer on their own. QC is meant for quality assurance, any check after completion does not serve the quality assurance.

4. The contractor shall test all the materials as per agreement specifications and results shall be recorded duly signed by the contractor or his representative and the section officer. The name of work and quarry location shall be clearly noted in the test reports.

SPECIAL CONDITIONS FOR SUPPLY OF H.D.P. EMPTY CEMENT BAGS

1. The rates quoted above are for delivery at the flood stores specified and including all charges complete.
2. The materials should be supplied within 15 days from the date of receipt of work order to the Assistant Engineer/Assistant Executive Engineer, concerned to the above flood stores.
3. The serviceable H.D.P. Empty cement bags, should be of I st class and quality in good condition and free from any damage or holes or patches and should be leak proof for filling earth or sand etc.,
4. The quantity specified in the schedule a is only approximate. If the department demands, the contractor should supply up to a maximum of 100% in excess of the quantity specified in the schedule a at the accepted agreement rate, if required, within 15 days of the required requisition from the Executive Engineer, Godavari Head Works division, Dowlaiswaram. Violation of the condition will be dealt wish suitably.
5. The contractor is liable to be penalized up to 5% of the value of the materials programm3ed for supply, if the fails to supply within the stipulated time at the discretion of the Executive Engineer.
6. The settled tenders should be available to receive any instructions from the Executive Engineer, Godavari Head Works division, Dowlaiswaram after 1st warning is issued.
7. If the contractor fails to supply the flood materials as stated above the agreement will be cancelled without any notice and E.M.D. will be forfeit to Government.
8. The contractor shall not insist for arranging payment soon after completion of work payment will be made as and when funds are made available by the Government.

Contractor

Executive Engineer
Godavari Head Works Division
Dowlaiswaram

9. SAND FOR FILLING:

The quantity of sand as stipulated in the schedule has to be first supplied in full and other materials shall then be supplied. Payment will be made only after complying with these instructions.

The seigniorage charges as specified at Rs.50/- per 1 Cum will be recovered from the Bill.

SPECIAL CONDITIONS FOR SUPPLY OF CASURINA PILES AND BAMBOOS

01. The rates quoted for the above materials are inclusive of cost conveyance and all incidental charges etc., complete.
02. The above materials should be delivered within 15 days from the date of receipt of work order to the flood stores as specified and as directed by the Departmental Officers.
03. The materials should be delivered in good condition as per the specifications given in the schedule A within 15 days from the date of receipt of work order to the Assistant Engineer / Assistant Executive Engineer of concerned section.
04. The materials found to be defective, will summarily be rejected and the department is no way responsible for its cost and conveyance wand the contractor has no right to demand for the cost, conveyance etc., for defective materials supplied to the stores. All defective materials will be replaced at the contractor's cost.
05. The quantity specified in the schedule A is only approximate. If the department demands the contractors should supply up to a maximum of 100% in excess of the quantity specified in the Schedule A at the accepted agreement rate within 15 days of the requisition from the Executive Engineer, Godavari Head Works Division, Dowlaiswaram. Violation of these conditions will be dealt with suitably.
06. The contractor is liable to be penalized up to 5% of the volume of materials if he fails to supply within the stipulated time at the discretion of the Executive Engineer.
07. The settled tenders should be available to receive any instructions from the Executive Engineer, Godavari Head Works Division, Dowlaiswaram after 1st warning is issued.
08. If the contractor fails to supply the flood materials as stated above, the agreement will be cancelled without any notice and EMD will be forfeited to Government.
09. The contractor shall not insist for arranging payment soon after completion of work. Payment will be made as and when found are made available by the Government. The contractor should not claim any interest in case of any delay in making payment.

Contractor

Executive Engineer
Godavari Head Works Division
Dowlaiswaram

INDEMNITY BOND

Name of work: **Improvements to Existing Pushkar Ghat in between K.M.29.800 to K.M.30.000 on Vasista Left Bank in Gopalapuram (Gullarevu) Village Limits of Ravulapalem Mandal in Dr.B.R.Ambedkar Konaseema District .**

I _____contractor S/o. _____aged _____resident of _____ do hereby bind myself to pay all the claims may come (a) under Workmen's Compensation Act 1933 with any statutory modification thereof and rules under or otherwise for or in respect of any damage or compensation payable in connection with any accident or injury sustained (b) under Minimum wages Act 1948(c) under payment of wages Act., 1936 (d) under the contractor Labour (regulation and abolition) Act 1970 by workmen engaged for the performance of the business relating to the above contract i.e.,

Failing such payment of claims of workmen engaged in the above work, I abide in accepting for the recovery of such claims, effected from any of my assets with the departments.

01. CFMS Beneficiary I.D. No.
02. Aadhar Card No.
03. PAN Card No.
04. GST No.
05. Bank Account No.
06. Name of the Bank:
07. Name of the Branch:
08. IFS Code:
09. Contact No. (Cell)

Contractor

Executive Engineer
Godavari Head Works Division
Dowlaiswaram